

Terms of Service

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Version 2025.2

The following terms and conditions of service ("**Terms of Service**") govern your use of the Services and form part of your Agreement, as defined below. If there is any inconsistency between these Terms of Service and any other document forming part of your Agreement, these Terms of Service will prevail unless such other document is executed by a TekSavvy Company and specifically provides that it prevails over these Terms of Service. There are important 911 terms related to the TekTalk™ digital phone service. Please review the entire Agreement. By activating this Service, you acknowledge that you have read, understood and agree to these Terms of Service.

1. GENERAL

1.1 TekSavvy Solutions Inc. and its subsidiaries and affiliates (individually "**TekSavvy Company**", and collectively "**TekSavvy Companies**") provide a broad range of telecommunications and broadcasting services to customers:

- a. "**TekSavvy**" means TekSavvy Solutions Inc., a telecommunications service provider and affiliate of Hastings;
- b. "**Hastings**" means Hastings Cable Vision Ltd., a broadcast distribution undertaking and affiliate of TekSavvy that provides certain Services, including the Internet Protocol Television ("**IPTV**") Service, TekSavvy TV;
- c. "**us**", "**we**", "**our**" or "**ourselves**" means the TekSavvy Companies named in the Agreement.

1.2 Capitalized terms not defined elsewhere in these Terms of Service shall have the following meanings:

- a. "**Agreement**" means all of the terms and conditions that govern your Services with the TekSavvy Companies, including these Terms of Service and any TekSavvy Company document(s) describing the services, plans, features or products you have selected, and any policies or other document(s) incorporated by reference.
- b. "**I**", "**me**", "**you**", "**your**" and "**yours**" refer to you and also to persons that you authorize to use the Service or act as your agent with regard to the Service or to use the Service through one or more accounts we have designated and provided to you (all such accounts hereinafter collectively called "**Account**" or "**Accounts**").
- c. "**Equipment**" means any device, equipment or hardware used to access the Services or used in conjunction with the Services, and in the case of Equipment supplied by or through us also includes all related documentation.
- d. "**Good Working Condition**" means maintained in working order and treated with reasonable care so that it is suitable for continued use. For greater clarity, Equipment will not be considered in Good Working Condition where it is in working order but is

unsuitable for use due to factors including but not limited to excessive odours, stains or other cosmetic damage that would not be considered reasonable wear and tear.

- e. **“Residents of Québec”** means residents of Québec who enter into an Agreement or to whom the Consumer Protection Act (Québec) and the Civil Code of Québec applies.
- f. **“Service”** or **“Services”** means any residential or business product(s) or service(s) that you subscribe to or receive from or through the TekSavvy Companies and that is not otherwise subject to a separate written agreement with the TekSavvy Companies, including all related documentation, Equipment and Software, including, but not limited to, Internet and other data service, phone service, long distance service, TV and media service, and hosting service.
- g. **“Software”** means any software used to access the Services or used in conjunction with the Services, and in the case of Software supplied by or through us also includes all related documentation.

1.3 You have chosen to subscribe to one or more Services. Your order for each Service will be confirmed and you will have entered into a binding contract with us with regard to that Service upon the earliest occurrence of one of the following: (1) you submit your online order, and it is accepted by us; (2) your telephone order is confirmed by us by email or other form; or (3) you execute an order provided to you in hard copy paper form which is returned to and accepted by us.

1.4 The Agreement applies to all Services obtained by you from us and runs from the date that the contract for the first Service is formed with you as aforesaid until either: (1) you give us notice, as and when permitted by the Agreement, of termination of the Agreement or of the last Service provided by us under the Agreement; or (2) we terminate the Agreement as permitted by the Agreement. The entire period of the duration of the Agreement is hereinafter called the **“Term”**.

1.5 Your Account information may, from time to time, be disclosed to our agents and dealers in order to service your Account, respond to your questions and telemarket and promote additional products and services offered by the TekSavvy Companies that may interest you. If you do not wish to receive offers or other promotional information from the TekSavvy Companies, please contact us at the address set out below. You can also use the unsubscribe mechanism provided in any promotional email from us to unsubscribe from commercial electronic messages from us.

1.6 Certain content and software employed in the provision of the Service may be provided by third parties (hereinafter called **“Affiliated Partners”**), including facilities and services of other providers of telecommunications services (such providers hereinafter collectively called **“Carriers”**) and broadcasting content providers.

1.7 Any Software supplied to you or otherwise made available to you in connection with the Service will be subject to the terms of an associated Software end-user license agreement (**“EULA”** or **“Software License Agreement”**) and shall remain our property or that of our agents or suppliers, as applicable. You shall take appropriate steps to protect the same against loss or damage. A copy of the applicable Software License Agreement will either be included with the Software or will be presented during the installation of the Software. It is your responsibility to review and agree to the terms and conditions of the applicable Software License Agreements

before installing or using the Software. Unless otherwise provided in the applicable Software License Agreement, a Software License Agreement ends when your subscription to all Services employing the corresponding Software terminates, and all Software License Agreements will terminate upon termination of the Agreement. Upon termination of a Software License Agreement, you must forthwith return or destroy any copies of the corresponding Software in your possession.

1.8 All intellectual property rights in the Software supplied by us are owned by us, our Carriers and/or other Affiliated Partners or their suppliers and are protected by applicable copyright laws. All of these parties retain any and all rights not expressly granted under the applicable Software License Agreement.

1.9 As a condition of using each Service, you agree to and must comply with the Agreement. The Agreement constitutes a binding contract between you and us with respect to the provision of each Service to which you subscribe by us and is binding on both you and us. As part of each Service, we may install and update Software on Equipment required to access the Service in order to protect the security of our network, to update or upgrade our network, update your Software to be compatible with our network, or to fix a bug. By agreeing to the Agreement, you also agree to the terms of any Software License Agreement for Software supplied to you in connection with the Service, and you further agree that the terms of any such Software License Agreement also form part of the Agreement.

1.10 In order to obtain a subscription to a Service, you must also be of the age of majority according to laws of the Province or Territory of Canada applicable to the Agreement and by agreeing to the terms of the Agreement you represent that you are of the age of majority according to such applicable laws.

1.11 From time to time, we may establish policies, rules and limits (together, the “**Policies**”) concerning use of the Services, Equipment and any products, content, applications or services used in conjunction with the Services or Equipment. Your use of the Services is subject to these Policies, which are incorporated into these Terms of Service by reference. We will provide you with notice of the Policies and of changes to the Policies. Our Acceptable Use Policy (“**AUP**”) is incorporated by reference into these Terms of Service and can be found [here in English](#) and [here in French](#). In addition, when using certain other Services, you may be subject to additional terms (which shall be communicated to you and posted from time to time) applicable to such Services and which shall be incorporated by reference into the Agreement.

1.12 You are solely responsible for all access to and use of the Service and Account, including any breach of the Agreement. Your use of the Service and Account means you agree with the terms and conditions of the Agreement. If you do not agree with any of the foregoing, your sole and exclusive remedy is to notify us and immediately discontinue your use of the Service and Account.

1.13 Not applicable to Residents of Québec: No sales representative, dealer, agent, officer, or employee of TekSavvy has the authority to change or modify these Terms of Service, except pursuant to an official revised version of these Terms of Service, and you may not rely on any such change or modification.

2. CONSEQUENCES OF AGREEMENT AND CONDITIONS OF USE OF THE SERVICE

2.1 By accessing and using any Service, you agree to the terms and conditions contained in the Agreement and you further agree to comply with and use the Service in accordance with the Agreement and all applicable laws.

2.2 By entering into the Agreement, you:

- Authorize us to obtain information about your credit history and agree that we may provide information to others about your credit experience with us;
- Accept all provisions of the Agreement, including these Terms of Service;
- Agree to cause all persons who use Services under your Account or with your authorization to comply with the Agreement;
- Acknowledge that the acts or omissions of all persons who use Services under your Account or with your authorization will be treated for all purposes as your acts or omissions;
- Acknowledge that you have received and had the opportunity to review a copy of the Agreement, including these Terms of Service;
- Confirm that the information you have provided to us is up-to-date and accurate; and
- Agree to promptly notify us of any change in your information.

2.3 You acknowledge that posting, transmitting, or otherwise distributing information constituting or encouraging conduct that would constitute a criminal offence or give rise to civil liability while using a Service or your Account is strictly prohibited. Using a Service in a manner that is contrary to law or to our policies or would serve to restrict or inhibit any other user from using or enjoying any services that we provide or the Internet is also strictly prohibited. You also agree not to use any Service or any Equipment or Software provided in connection with a Service in a manner that contravenes restrictions lawfully and legitimately imposed on us by our Carriers. Harassment or abuse of any kind directed at our employees, contractors, agents or representatives is strictly prohibited.

2.4 You shall not in any way resell, license or allow any third party to use the Service without receiving our prior written consent. You may not share or transfer your Services without our express written consent.

2.5 You shall not decompile, disassemble, or otherwise reverse engineer or attempt to reconstruct any Software and Equipment supplied by or through us by any means whatsoever, without our prior written consent.

2.6 We reserve the right to suspend or terminate your Services or any portion thereof without prior notice, where any of your Services is used in any manner that impairs the use of Service(s) by others, is inconsistent with the Agreement or is contrary to law, or during any period in which any amount payable by you to us is past due. We may move, remove or refuse to post any content, information or materials, in whole or in part, that we decide are unacceptable, undesirable or in violation of the Agreement.

2.7 Without limiting our other rights and remedies under the Agreement and at law, we may, in our sole and unfettered discretion, terminate your subscription to a Service and/or your Account

without notice, for any breach of the Agreement or any portion thereof by you, or anyone accessing or using a Service through you, your Equipment or Account.

2.8 We may, in our sole discretion and without your consent, migrate your Services to other networks and platforms or change our suppliers, as and when it becomes necessary. Without limiting the generality of the foregoing, we may effect such a migration or change in suppliers in order to maintain, upgrade or enhance the performance of any Service and other deliverables provided to you hereunder, to ensure continuity of such Service and the integrity of our network, and/or to comply, as necessary, with manufacturers' requirements. You expressly agree that any such migration or change does not constitute amendment or material change to the Agreement or to the Services.

2.9 Until all Services under the Agreement have been cancelled or terminated as provided in the Agreement, all terms of the Agreement continue to apply.

3. SERVICE CHANGES AND AMENDMENTS TO THE AGREEMENT

3.1 Not applicable to Residents of Québec: Unless otherwise specified in the Agreement, we may change, at any time, any charges, features, content, structure or any other aspects of the Services, as well as any term or provision of the Agreement, upon notice to you. If you do not accept a change to the affected Services, your sole remedy is to terminate the affected Services provided under the Agreement, within 30 days of your receipt of our notice of change to the Services (unless we specify a different notice period), by providing us with advance notice of termination pursuant to Section 11.2. If you do not accept a change to these Terms of Service, your sole remedy is to retain the existing Terms of Service unchanged for the duration of the Contract Period (as defined in Section 8.12), upon notice to us within 30 days of your receipt of our notice of change in the Terms of Service.

3.2 Applicable only to Residents of Québec: Unless otherwise specified in the Agreement, we may change, at any time, but upon no less than 30 days' prior written notice to you, which will include any new provisions and/or the new and former wording of any amended provisions, as applicable, together with the date(s) that any such new and/or amended provisions come into force:

a) with respect to a plan or Service not subscribed to for a Contract Period (as defined in Section 8.12), any charges, features, content, functionality, structure or any other aspects of the plan or Service, as well as any term or provision of the Agreement, and

b) with respect to a plan or Service subscribed to for a Contract Period, any aspect of the plan or Service, as well as any term or provision of the Agreement, other than essential elements of the plan, Service or Agreement. If the change entails an increase in your obligations or a decrease in our obligations and if you do not accept such a change, you may terminate your Services without an ETF (as defined in Section 8.12) by sending us a notice to that effect no later than 30 days after the amendment takes effect.

3.3 Notice to you of any changes to the Agreement or any material change to any Service to which you subscribe may be effected by sending you notice via email to the primary email account associated with your Account.

4. RISK ALLOCATION AND RESPONSIBILITY FOR USE OF ACCOUNTS

4.1 The rates and fees charged by us reflect the allocation of risk herein and the limited recourse to us provided for in the Agreement. You agree to cause all persons who use any Service through your Account to observe and comply with the terms and conditions of the Agreement respecting such use. You further agree that you are solely responsible and liable for any and all breaches of the terms and conditions of the Agreement, whether such breach is the result of use of a Service by you or by any other user using your computer or Account, whether or not authorized by you. We will not assume any responsibility for your acts or omissions or of any individual who uses your Account.

4.2 You are solely responsible for the placement of physical and procedural impediments to the inappropriate use of your Account, including password protection and are solely responsible for supervising any and all use of your Account. You agree to hold us, our affiliates, agents and suppliers, including without limitation our affiliated suppliers and carriers, harmless from all liabilities and expenses related to any violation of the Agreement or laws by you or any user(s) of your Account, or in connection with your or their use of any Service(s).

4.3 Please note that your messages and transmissions over the Internet may be the subject of unauthorized interception and review. A person with Internet access can cause damage, incur expenses, enter into contractual obligations and attract liability while on the Internet. You can incur many charges and may be exposed to liability on the Internet in connection with your use of Services. All such matters are your responsibility. We, our Affiliated Suppliers and our Carriers are not responsible for any charges or taxes (expressly including, without limitation, provincial or federal universal service charges, regulatory fees of any kind, federal excise or sales tax, or provincial sales tax), or liability you incur.

5. SERVICE AND ACCOUNT MONITORING

5.1 Privacy protection is a core TekSavvy value: under virtually no circumstances do we take steps to monitor your Services or Account beyond the network usage monitoring that is exposed to you in your MySavvy, and, where available, monitoring of your connectivity and performance on our network. We are a neutral, common-carrier-like intermediary, and we neither know, nor want to know, what you communicate using the Services: that's between you and those you communicate with. However, there are two exceptions:

- First, it may be necessary to do so in order to manage and operate the Services, or to protect ourselves or others. This may arise in the context of network abuse. We treat any such information as personal information and treat its confidentiality very seriously.
- Second, from time to time, we could be legally obligated to monitor an account, by someone with the judicial or statutory authority to compel it. We test the degree to which we are so obligated vigorously, and unless specifically prohibited, will let you know about it as soon as possible. TekSavvy publishes quarterly [transparency reports](#) on our website to provide insight into our disclosure practices by dealing with how often we receive and respond to government agencies' requests for the personal information of our end users for law enforcement.

6. INFORMATION RELATING TO THE SERVICES

6.1 You hereby acknowledge that we may retain and use any information, comments or ideas conveyed by you relating to the Services (including any products and services made available on the Service). This information may be used to provide you with better service.

6.2 We may send you Service-related information on a regular basis via email addressed to the primary and other email addresses associated with your Account. You agree to review and to familiarize yourself with all such Service-related information, and we are not liable for any damage or detriment to you or your property resulting from your failure to do so. Your continued use of any Service following delivery of any such Service-related information means that you accept and agree to comply with such information, as applicable.

7. MINIMUM EQUIPMENT AND SOFTWARE REQUIREMENTS, PRE-INSTALLATION PRECAUTIONS AND INSTALLATION APPOINTMENTS

7.1 Equipment shall be deemed to have been delivered in Good Working Condition unless you give us notice to the contrary within five days of receiving the Equipment.

7.2 Except for Equipment for which you have fully paid, all Equipment installed or provided by us remains our property and you agree that:

- You will take reasonable care with such Equipment;
- You may not sell, lease, mortgage, transfer, assign or encumber such Equipment;
- You may not reconfigure or re-locate such Equipment without our knowledge and permission; and
- You will return such Equipment to us in accordance with section 8.14.

If any Equipment belonging to us is lost, stolen or damaged or sold, leased, mortgaged, transferred, assigned, encumbered or not returned when required, you agree to pay us the undiscounted retail value of such Equipment, together with any costs incurred by us in seeking possession of such Equipment.

7.3 You authorize us and our representatives to enter or have access to your premises as necessary at mutually agreed upon times to install, maintain, inspect, repair, remove, replace, investigate, protect, modify, upgrade or improve the operation of our Services, the Equipment or our facilities or networks. If any of your Services or Accounts has been terminated, then you authorize us and our representatives to enter or have access to your premises to disconnect the Services, as applicable. If you live in a condominium, townhouse, apartment or other form of multiple dwelling or rental unit, it is your responsibility to obtain the required letter of authorization and arrange for access to the building utility room from the condominium board, landlord, or other authorized representative or governing body for the purposes of service installation and we will rely on you having obtained such authorization and access. You acknowledge that this work may include the following, as applicable:

- laying conduit (either underground or aerial) to connect building(s) with public fibre nodes/connection points;
- Installing equipment and cables on the exterior of the building(s);
- drilling/boring a hole through the exterior wall of the building(s);

- pulling cable from outside, through exterior walls, and into the building(s), plus any ancillary work; and
- other minor, but permanent changes, that may be necessary for fibre installation, maintenance, and repair.

7.4 Equipment and related Software may have to meet certain minimum requirements and be maintained in certain ways and in certain locations in order to access the Services or for the proper operation of the Services (e.g., 911 services, firmware versions required by our wholesale access providers). Such requirements may be changed from time to time at our sole discretion. Unless otherwise specified by us, you are solely responsible for updating or maintaining your Equipment and Software as necessary to meet such requirements, and you may not be entitled to customer support from us if you fail to do so. If you do not update your Equipment and Software as required, your Service may also cease to be accessible, in which case your sole and exclusive remedy is to stop using the Service and call us immediately to cancel it at 1.877.779.1575.

7.5 You must immediately notify us, at any of the points of contact specified below, if your Equipment is lost, stolen or destroyed. If you then wish to terminate your Services, your obligations under the Agreement, including the ETF (as defined in Section 8.12), will apply.

7.6 We recommend that you back up all existing files by copying them to another storage medium prior to the installation of the Equipment and Software required for any Service. We cannot guarantee that your personal computer will or can be configured to work properly with the Software or Services, and we cannot assist you with any such configuration issues. We assume no liability whatsoever for any damage to or loss of any software, files, data, or for any personal computer or other computer system warranty infringements due to Equipment or Software installation related to the Service. We assume no liability whatsoever for any damages or losses associated with any installation that you choose to do.

7.7 Unless otherwise specifically set out in the Agreement, to the maximum extent permitted by applicable law, neither the TekSavvy Companies nor our affiliates, subsidiaries, partners, licensors, dealers, representatives, suppliers and agents (and their respective employees, officers, directors, shareholders and representatives) (each of the foregoing individually “**TekSavvy Party**” and all of the foregoing collectively, “**TekSavvy Parties**”) will be liable to you or to any third party for any claims, damages, losses or expenses, including without limitation lost wages or missed work, in the event that an installation appointment for a Service is missed, either by us or by any third party installer.

8. SERVICE FEES; ACCOUNT AND PAYMENT INFORMATION; NOTICES TO YOU

8.1 You may be invoiced by either Hastings or TekSavvy, depending on where you live and the type of Service(s) you use. Applicable charges for a service will commence on the date that the Service is ordered (the “**Order Date**”). Unless otherwise agreed to by you and us, we will bill you monthly. You can access your invoices in our customer portal. Unless you elect to receive paper bills, invoices or invoice notices will be delivered by email to the primary email address associated with your Account. All communication for the purpose of billing or legal notice may be made by email or by delivery to your domicile, which shall be deemed to be the last billing and/or service address(es) that you have provided to us. If you elect to receive paper invoices, your invoices will be delivered to the last service address(es) that you have provided to us.

8.2 In the event we fail to bill you or underbill you for a charge, you will not be responsible for paying the previously unbilled or underbilled charge except where: (1) in the case of a recurring charge, you are correctly billed within a period of one year from the date the charge was incurred; or (2) in the case of a non-recurring charge, you are correctly billed within a period of 150 days from the date the charge was incurred. However, this time limitation does not apply if we have failed to bill you or underbilled you due to deception on your part.

8.3 You are liable for all charges to your Account, including without limitation, installation fees, change fees, reinstatement fees, Equipment purchase and/or rental fees, Software licences, fees for the provision of Services, ETFs (as defined in Section 8.12) and administrative fees (collectively, **“Service Fees”**), and these are due and payable in full from the date of your invoice or statement.

8.4 You agree to treat our access codes and passwords, where applicable, as confidential and non-transferable. We reserve the right to deactivate or reset (as applicable) our access codes and passwords without notice if, in our sole discretion, fraudulent use is suspected. In the event that a access code or password is used in an unauthorized manner, you shall notify us by calling 1.877.779.1575. You acknowledge and agree that you shall be responsible for all costs incurred until such notification to us.

8.5 In exceptional circumstances, for example, where you present an abnormal risk of loss to us, prior to the normal billing date we may require payment from you on an interim basis for the charges that have accrued. In such cases, the charges will be considered past due three days after they are incurred or three days after we demand payment, whichever occurs later.

8.6 We may request immediate payment in extreme situations, provided we have notified you and the abnormal risk of loss has substantially increased since that notice was given or we, at our sole discretion, have reasonable grounds for believing that there exists an intention to defraud us.

8.7 Where we provide the option to pay your Service Fees by credit card, debit card, pre-authorized payment, bank account debit, or other pre-authorized payment methods and you designate one of these to us for payment, you hereby authorize us to charge that credit or debit card, or debit that financial institution or other authorized account, every time we render you an invoice, for up to the full amount of the invoice.

For recurring credit card payments, when you subscribe you must provide us with a valid credit card number, and related required information we request. That lets us charge the credit card on a recurring basis.

For recurring bank account debits, if we make these available and you opt for them, then when you subscribe you must provide the particulars of the financial institution account to be debited: transit number, institution number, account number, and related required information. That lets us debit the financial institution account on a recurring basis. We may also need a completed pre-authorized payment form that we provide to you.

It is your responsibility to ensure that the credit card or financial institution account information or other payment method that you provide to us remains valid and current and that we are able to continue charging or debiting it to pay your bill. If you do not do this, or if your payments are in arrears, we may suspend or terminate your Services or Account without any further notice to

you, triggering payment of the ETFs described in 8.12. At its sole discretion, TekSavvy may require that Service Fees be paid through an automatic payment method, such as recurring credit card charges, bank account debits, or other pre-authorized payment methods, as a condition of receiving or continuing to receive the Services.

8.8 If payment of an amount due on your Account is not received by us by the required payment date specified by us, it will be considered a delinquent amount and, from the date of the first invoice on which the delinquent amount appears until the date we receive such amount in full, the delinquent amount will be subject to a late payment charge that is the lesser of: (a) 2% per month, calculated and compounded monthly on the delinquent amount (26.82% effective annual rate); and (b) the highest rate permissible under applicable law.. You agree that we can charge any unpaid and outstanding amount, including any late payment charges, on your Account to your credit card, bank account or any other payment method pre-authorized by you for payment of our charges.

8.9 Not applicable to Residents of Québec: Administrative charges may be levied for administration or account processing activities in connection with your Account, including as a result of the following:

- Collection efforts due to non-payment or having a balance over your credit limit, including unbilled usage and pending charges, fees and adjustments;
- Returned or rejected payments;
- Change of any identifier (e.g., phone number); and
- The restoral of Service.

A list of such charges, as amended from time-to-time, is available on request, and is incorporated into these Terms of Service by reference.

8.10 Applicable only to Residents of Québec: Administrative charges may be levied for administration or account processing activities in connection with your Account, including as a result of the change of any identifier (e.g., phone number). A list of such charges, as amended from time to time, is available on request, and is incorporated into these Terms by reference.

8.11 Any questions or discrepancies regarding Service Fees must be reported to us within 90 days of the date of our invoice or other statement. Failure to notify us within this time period will constitute your acceptance of such Service Fees.

8.12 Unless otherwise set out in the Agreement, if you agree to subscribe to one of our plans or Services for a committed period of time (the “**Contract Period**”), you may be subject to an early termination fee (“**ETF**”) for each Service. Any decrease in your Contract Period may be subject to a fee. If your Service is terminated prior to the end of the Contract Period, you will pay us an ETF as specified in the Agreement, plus taxes.

8.13 Changes to your Account (e.g., price plan, features or identifiers) may not take effect until after your next billing date.

8.14 All Equipment installed or provided by us, except Equipment purchased outright by you, remains our property and, with the exception of Equipment subject to a rent-to-own (“**RTO**”) arrangement, you agree to return such Equipment to us in Good Working Condition at your own expense within 30 days of the earlier of: (i) terminating your subscription to the Service(s) in respect of which the Equipment was provided to you; (ii) when the Agreement is terminated; (iii)

when the Equipment is no longer in use with the Services to which it relates, such as when you are provided with replacement Equipment by us, or if you purchase alternative Equipment; or (iv) upon our request (any of the foregoing, a “**Return Event**”). If you fail to return Equipment in Good Working Condition within 30 days of a Return Event, we will charge you the undiscounted retail cost of any Equipment not returned to us. In the event Equipment is returned after 30 days following a Return Event but no later than 60 days following a Return Event, your account will be credited back any amounts we have charged for the Equipment, less a \$25 restocking fee in recognition of our costs in seeking to obtain possession of such Equipment. Credits for any charges for non-returned Equipment will not be issued for Equipment returned more than 60 days following a Return Event.

8.15 While in your possession, our provided Equipment may be charged to you as part of your Service Fees. We may require you to pay an Equipment deposit prior to providing you with Equipment. You agree to pay us the full retail cost of any Equipment not returned to us as required by this Agreement, upon disconnection or loss, together with any costs incurred by us in seeking to obtain possession of such Equipment. We may charge you all costs relating to repair or replacement of damaged Equipment.

8.16 In accordance with the approach to cancellation and termination described below, the TekSavvy Companies will refund prepaid Service fees based on the number of days left in the last monthly billing cycle after your cancellation date.

8.17 The use of certain Services may require you to use other telecommunications services and incur corresponding additional charges. In such cases, you are solely responsible for the payment of all charges associated with your use of such other telecommunications services, whether you obtain such other services from us or other suppliers.

9. DEPOSITS AND CREDIT REQUIREMENTS

9.1 Not applicable to Residents of Québec: We may require a deposit or impose other payment or credit requirements (e.g., interim payments; mandatory pre-payments) at any time and on such terms as determined in our sole discretion. You will not earn any interest on any deposits or other payments held by us. If your Service is terminated, we will apply any deposits or other payments against the outstanding final balance on your Account.

9.2 Applicable only to Residents of Québec: We may require a deposit or impose other payment or credit requirements (e.g., interim payments; mandatory pre-payments) at any time and on such terms as determined in our sole discretion. Any security deposit held by us will bear interest at the rate determined by regulation, as determined from time to time, from the date we collect a security deposit or from June 30, 2010, if a security deposit is already being held by us at that date, until the date we return it to you. We will notify you in writing upon using all or part of a security deposit. If your Service is terminated, we will return any security deposits with applicable interest minus the outstanding final balance on your Account within 30 days of termination of your Services

9.3 Upon notice to you, we may assign, change or remove a credit limit on your Account at any time. Service may be suspended, at any time, to any and all of your Accounts, if your balance, including unbilled usage and pending charges, fees and adjustments, exceeds this limit. Recurring service charges continue to apply during any suspension of Services.

10. AVAILABILITY AND INSTALLATION OF SERVICE

10.1 Each Service is available only in those areas to which the network of the TekSavvy Companies and the networks of Carriers employed by the TekSavvy Companies to provide the Service extend and where the Service has actually been rolled out by us. Service availability is also subject to the availability of appropriate facilities and is dependent on the availability of suitable technology at the location(s) at which you wish to obtain the Service.

10.2 The availability of high-speed Internet Service is dependent on the availability of suitable residential telephone lines/local loops and/or cable facilities supplied by other Carriers. The number of service connections per address may be limited. You acknowledge and agree that we shall conduct a preliminary geographical check upon your placing an order to determine if high-speed Internet Service is available in your geographical area. Due to the nature of high-speed Internet Service technology, we reserve the right to deem the high-speed Internet Service unavailable to you up to, including, and after the installation. Where a high-speed Internet service having certain characteristics is required in order for us to be able to provide another Service ("**Internet Dependent Service**"), and the required Internet service is not available, we will be unable to provide the Internet Dependent Service, unless and until you make arrangements to obtain the required high-speed Internet service.

10.3 You acknowledge that TekTalk™ is an Internet Dependent Service and is available only at selected locations served by us where suitable facilities, underlying high-speed Internet service, direct inward dialed numbers and arrangements with other underlying Carriers are available.

10.4 In order to obtain Service and depending on the nature of the Service, you may have to purchase or lease certain additional Equipment and obtain additional services from one or more other providers of telecommunications services. As noted above, leased Equipment supplied by or through us, remains our property at all times. You are responsible for all such Equipment and it must be returned to us upon termination of the Service or part of the Service for which it was leased. Self-installation of Equipment is not allowed for certain Services. For those Services for which it is allowed, if you choose to install such Equipment yourself, the type of Equipment to be installed must be pre-approved by us and your installation configuration must conform to applicable specifications. We assume no liability for any damage or losses caused if you choose to self-install.

10.5 Should your Services include a requirement for local number portability or equal access, your entry into the Agreement also authorizes us, directly or through our underlying Carriers, to port the requested telephone number(s) from your existing local and/or long distance service provider(s), onto our local and/or long distance network.

10.6 Internet Service may include the ability to establish multiple email accounts. Email accounts may be established for other members of your household, and all such accounts shall form part of your Account and be subject to the Agreement. Email accounts created for users who are under the age of majority may be established only with the consent of those persons' parents or guardians. Email accounts are terminated upon termination of your Internet Service or Account. We may also, at any time, suspend or delete an Internet Service or email account where the email account or any one of your Services is used in any manner that impairs the use of Service(s) by others, is inconsistent with the Agreement or is contrary to law, or during any period in which any amount payable by you to us is past due. During a period when an email account is suspended: (1) you may not access your email to view copies of emails sent to you

prior to the suspension; (2) you may not send emails from the suspended account; (3) emails directed to that account are still received; and (4) after meeting any applicable conditions, you may call our help desk to reactivate the email account fully at 1.877.779.1575. When an email account is deleted, all emails in the account prior to deletion will also be deleted and will not be recoverable.

10.7 As a condition of continued use of any Service, we may require you: (1) to download and install upgrades, patches or more recent versions of any component(s) of any applicable Software; and (2) to verify the accuracy of your registration and billing information.

11. TERM, TERMINATION AND SUSPENSION

11.1 The term of the Agreement, and any applicable Contract Period, starts on the Order Date. It will continue indefinitely until terminated, in accordance with the provisions of the Agreement and, where the law is more restrictive, with applicable law.

11.2 Unless otherwise provided by applicable law:

- You may terminate any Service at any time by requesting cancellation over the phone at the numbers specified in these Terms of Service at Section 28.1.
- We may terminate any of your Services or Accounts in our sole discretion without cause upon no less than 60 days' advance notice to you at your billing address. If you have subscribed to a plan or Service for a Contract Period, then we may terminate your Services only if you are in default of your obligations, including one of the events of default described in Section 11.3.

11.3 In addition to our rights to terminate your Services pursuant to Section 11.2, we may restrict, block, suspend or terminate any or all of your Services or Accounts, including 9-1-1 service, or identifiers in any way, without notice or liability to you, if:

- You are in breach of the Agreement, including non-payment of your charges or non-compliance with any Policies;
- You do not maintain Service usage within the prescribed credit limit;
- You exceed reasonable usage limits, as determined by us;
- You have given us false, misleading or outdated information;
- We reasonably suspect or determine that any of your Accounts, identifiers, Services or Equipment is the subject of fraudulent, unlawful or improper usage or usage that adversely affects our operations or the use of our services, facilities or networks by others;
- You harass, threaten or abuse us or our employees or agents;
- You fraudulently or improperly seek to avoid payment to us;
- We need to install, maintain, inspect, test, repair, remove, replace, investigate, protect, modify, upgrade or improve the operation of the Services, the Equipment or our facilities or networks;
- Any account or service on which your Services depend is terminated in accordance with our Terms of Service for any reason; or

- We reasonably believe that there is an emergency or extreme circumstance that would warrant such action.

11.4 If we restrict, suspend, block or terminate your Services or Accounts:

- You must pay any amounts owing;
- We may also suspend, block or terminate, without notice or liability, your services under any other agreement or account that you may have with us (including accounts that may be in good standing);
- You may be charged for any costs incurred by us or any related TekSavvy entity in connection with your breach of these Terms of Service, including costs incurred to enforce your compliance;
- Your access to emergency or special needs services (e.g., 9-1-1) may also be restricted, suspended, blocked or terminated; and
- Your rates for services may change in accordance with the terms of those services.

11.5 Cancellations can only be requested by the Account holder and must be submitted no more than 30 days in advance of the requested cancellation date. All cancellations are final. Please allow five business days for cancellations to be processed. After cancellation, refunds for unused prepaid fees will be issued by cheque, electronic funds transfer or to the credit card originally charged within 14 days. The refund will be calculated based on the number of days left in the monthly billing cycle after the cancellation date. Any postpaid services used before the cancellation date (like bandwidth overages and long-distance charges), and any other outstanding amounts, will be billed on a final invoice.

11.6 In cases where your address does not qualify for service and upfront fees have been paid, your Account will be issued a full refund of invoiced fees, including fees for Services, shipping fees and Equipment. Shipping and Equipment fees will only be refunded however provided TekSavvy receives all Equipment in accordance with the requirements of Section 8.14. TekSavvy will make every effort to contact you in this situation.

11.7 In the cases of cancellations prior to activation of Services, in order to obtain a full refund of activation fees and monthly service fees, you must cancel your order at least 48 hours prior to your scheduled installation. Where cancellation requests are received less than 48 hours prior to the scheduled installation, activation fees and shipping are non-refundable. Your Account will be refunded any invoiced Service fees. Equipment fees will only be refunded provided TekSavvy receives all Equipment in accordance with the requirements of Section 8.14. This section does not apply to Account holders who have entered into an agreement with a Contract Period, which can be cancelled in accordance with Section 21.

11.8 Customers with Equipment subject to an RTO arrangement will have two options when cancelling Service: (1) return the Equipment in Good Working Condition and stop making any further RTO payments – no refund will be issued for payments already made before the returned Equipment is received; or (2) keep the Equipment and pay out the remaining RTO balance in either one full payment or by continuing payments on your existing schedule.

12. PERFORMANCE LEVELS OF SERVICES

12.1 There are certain limitations to the Services.

12.2 This paragraph is intentionally left blank.

12.3 In the case of Internet Service generally, speed is a function of many technical factors, some of which are not under our control. As such, we do not guarantee the maximum Service performance (i.e., throughput or speed) levels. You understand and agree that any content that you may access through the Internet Service may be subject to "caching" at intermediate locations on the Internet. Similarly, simultaneous use of high bandwidth applications (example, streaming media) by one or more (example, home networking) users may result in an experience that is slower when compared to a single application used by a single user.

12.4 In the case of Internet Service, we or our underlying Carriers may impose caps on bandwidth usage and hence such usage capacity is not unlimited in those cases. We and those Carriers are entitled to enforce those bandwidth caps. If you refuse to adhere to the caps, your Internet Service may be suspended, restricted, subjected to traffic shaping or terminated, and/or extra charges may apply.

12.5 TekTalk™ may not in all instances perform with the same degree of reliability or quality as equivalent traditional wireline telephone services.

12.6 You acknowledge and understand that the Services or access to the Services, including 911, public alerts or special needs services, may not function correctly, or at all, in the following circumstances:

- If your Equipment fails, is not configured correctly or does not meet our requirements;
- In the event of a high-speed Internet service outage, regardless of the supplier providing the high-speed Internet service to you;
- In the event of a network outage or power failure;
- If you tamper with or, in some cases, move the Equipment; or
- Following suspension or termination of your Services or Account.

12.7 No TekSavvy Party is responsible or liable to you for any software, content or services provided to you or accessible by you through the Services, any charges incurred in connection with such software, content or services or anything that is or can be done with such software, content or services even if you are billed for such software, content or services. All such software, content or services is accessed or transmitted solely at your own risk.

12.8 You are responsible for the use and compatibility of the Services with any Equipment, Software, services and/or other materials not provided by us (hereinafter called the "**Third Party Equipment and Services**"). We disclaim all responsibility for determining compatibility between any Service and any Third Party Equipment and Services.

12.9 Not applicable to Residents of Québec: To the maximum extent permitted by applicable law:

- The TekSavvy Parties do not guarantee or warrant the performance, availability, coverage, uninterrupted use, security, pricing or operation of the Services, the

Equipment or any products, content, applications, services, facilities, connections or networks used or provided by us or third parties (collectively, the “**Offering**”);

- You bear the entire risk as to the use, availability, reliability, timeliness, quality, security and performance of the Offering; and
- The TekSavvy Parties do not make any express or implied representations, warranties or conditions, including warranties of title or non-infringement, or implied warranties of merchantable quality or fitness for a particular purpose, with regard to the Offering.

All representations, warranties and conditions of any kind, express or implied, are excluded to the maximum extent permitted by applicable law. To the maximum extent permitted by applicable law, no advice or information, whether oral or written, obtained by you from the TekSavvy Parties creates any term, condition, representation or warranty not expressly stated in the Agreement.

You are solely responsible for the following matters:

- Any access to the Equipment;
- Maintaining the security and privacy of your property and your transmissions using the Services, the Equipment or our facilities or networks; and
- Protecting against any breaches of security or privacy or other risks involved in installing, using, maintaining or changing the Services or the Equipment.

12.10 Applicable only to Residents of Québec: To the maximum extent permitted by law:

- The TekSavvy Parties do not guarantee or warrant the performance, availability, coverage, uninterrupted use, security, pricing or operation of the Services, the Equipment or any products, content, applications, services, facilities, connections or networks used or provided by us or third parties (collectively, the “**Offering**”);
- You bear the entire risk as to the use, availability, reliability, timeliness, quality, security and performance of the Offering; and
- The TekSavvy Parties do not make any express or implied representations, warranties or conditions, including warranties of title or non-infringement, or implied warranties of merchantable quality or fitness for a particular purpose, with regard to the Offering.

You are solely responsible for the following matters:

- Any access to the Equipment;
- Maintaining the security and privacy of your property and your transmissions using the Services, the Equipment or our facilities or networks; and
- Protecting against any breaches of security or privacy or other risks involved in installing, using, maintaining or changing the Services or the Equipment.

13. LIMITATIONS OF LIABILITY

13.1 Not applicable to Residents of Québec: Unless otherwise specifically set out in the Agreement, to the maximum extent permitted by applicable law, the TekSavvy Parties will not be liable to you or to any third party for:

- Any direct, indirect, special, consequential, incidental, economic or punitive damages, expenses, costs, liability, loss, or damage whatsoever (including loss of profit or revenue, financial loss, business interruption, loss of use of any information system, loss of business opportunities, loss, destruction or alteration of data, files or software, failure to realize expected savings or any other commercial or economic loss, breach of privacy or security property damage, personal injury, death or any other foreseeable or unforeseeable loss, however caused, whether arising in negligence, tort, statute, equity, contract, civil or common law, or any other cause of action or legal theory even if advised of the possibility of such loss or damage) resulting or relating directly or indirectly from or relating to the Offering or any advertisements, promotions or statements relating to any of the foregoing, even if we were negligent or were advised of the possibility of such damages;
- The performance, availability, reliability, timeliness, quality, coverage, uninterrupted use, security, pricing or operation of the Offering;
- Any error, inclusion or omission with respect to any telephone listings or directories;
- The denial, restriction, blocking, disruption or inaccessibility of any Services, including 911, public alerts or special needs services, Equipment or identifiers (including telephone numbers);
- Any lost, stolen, damaged or expired Equipment, identifiers, passwords, codes, benefits, discounts, rebates or credits;
- Any error, omission or delay in connection with the transfer of telephone numbers to or from another telecommunications service provider or any limitation connected thereto;
- Any acts or omissions of a telecommunications carrier whose facilities are used to establish connections to points that we do not serve; or
- Any claims or damages resulting directly or indirectly from any claim that the use, intended use or combination of the Offering or any material transmitted through the Services infringes the intellectual property, industrial, contractual, privacy or other rights of a third party.

These limits are in addition to any other limits on the TekSavvy Parties' liability set out elsewhere in the Agreement and apply to any act or omission of the TekSavvy Parties, whether or not the act or omission would otherwise be a cause of action in contract, tort or pursuant to any statute or other doctrine of law.

13.2 Applicable only to Residents of Québec: Unless otherwise specifically set out in the Agreement, and except for damages resulting from a TekSavvy Party's own act, the TekSavvy Parties will not be liable to you or to any third party for:

- Any damages (including loss of profit or revenue, financial loss, business interruption, loss of use of any information system, loss of business opportunities, loss, destruction or

alteration of data, files or software, failure to realize expected savings or any other commercial or economic loss, breach of privacy or security or property damage, whether arising in negligence, tort, statute, equity, contract, civil or common law, or any other cause of action or legal theory even if advised of the possibility of such loss or damage) resulting or relating directly or indirectly from or relating to the Offering;

- The performance, availability, reliability, timeliness, quality, coverage, uninterrupted use, security, pricing or operation of the Offering;
- Any error, inclusion or omission with respect to any telephone listings or directories;
- The denial, restriction, blocking, disruption or inaccessibility of any Services, including 911, public alerts or special needs services, Equipment or identifiers (including telephone numbers);
- Any lost, stolen, damaged or expired Equipment, identifiers, passwords, codes, benefits, discounts, rebates or credits;
- Any error, omission or delay in connection with the transfer of telephone numbers to or from another telecommunications service provider or any limitation connected thereto;
- Any acts or omissions of a telecommunications carrier whose facilities are used to establish connections to points that we do not serve; or
- Any claims or damages resulting directly or indirectly from any claim that the use, intended use or combination of the Offering or any material transmitted through the Services infringes the intellectual property, industrial, contractual, privacy or other rights of a third party.

13.3 The TekSavvy Parties' collective liability for negligence, breach of contract, tort or other causes of action, including fundamental breach, to the extent permitted by applicable law, is limited to payment, upon request, for actual and direct damages of a maximum amount of \$20 or an amount equal to the Service Fees payable during any service outage, whichever is greater. Other than this payment and to the extent permitted by applicable law, neither the TekSavvy Parties nor their Affiliated Partners, including Carriers, shall be liable under any circumstances to you or any third party for any damages, including direct, indirect, special, consequential, incidental, economic, exemplary or punitive damages including loss of data, loss of income, loss of profit or failure to realize expected savings arising directly or indirectly from TekSavvy Parties' (or their Affiliated Partners', including Carriers') negligence or breach of contract (including fundamental breach or otherwise).

13.4 This Section 13 of the Agreement shall apply even if there is a breach of condition, a breach of an essential or fundamental term, or a fundamental breach of the Agreement.

13.5 You agree that the limitations of liability set out in this Section 13 are fair and reasonable in the commercial circumstances of the Agreement and that we would not have entered into the Agreement but for your agreement to limit our liability in the manner and to the extent provided in this Section 13.

14. INDEMNIFICATION

14.1 You will defend, indemnify, and hold harmless the TekSavvy Parties from and against any claims, losses, damages, costs and expenses (including, without limitation, reasonable legal fees and other litigation expenses) incurred by the TekSavvy Parties relating to your violation, alleged violation or misappropriation of any intellectual property, industrial, contractual, privacy or other rights of a third party or any alleged libel or slander by a third party against you.

14.2 You will defend, indemnify, and hold harmless the TekSavvy Parties from and against any claims, losses, damages, costs and expenses (including, without limitation, reasonable legal fees and other litigation expenses) incurred by the TekSavvy Parties relating to the violation of the Agreement by you or any user of your Account, or in connection with your or their use of the Services.

14.3 You will defend, indemnify, and hold harmless the TekSavvy Parties from and against any claims, losses, damages, costs and expenses (including, without limitation, reasonable legal fees and other litigation expenses) caused or claimed to be caused by the TekSavvy Parties installing, maintaining, repairing, replacing, or removing telecom services at the premises. You further release the TekSavvy Parties from any liability associated with doing so.

15. LIMITATIONS OF TEKTALK™ 911 CALLING AND RELATED LIMITATION OF LIABILITY

15.1 There are some differences and limitations in how 911 calling over TekTalk™ operates relative to 911 service over traditional telephone service as further described in the following Sections. **Please review all of Section 15 of this document thoroughly before activating, installing or using the TekTalk™ Service.**

15.2 We offer a form of 911 calling that is similar to traditional 911 service but has some important differences and limitations when compared with enhanced 911 service (“**E911**”) available in most locations in conjunction with traditional telephone service. With both traditional basic 911 and E911 service, your call is sent directly to the nearest emergency response centre. In addition, with E911 service, your call back number and last address are visible to the emergency response centre call-taker. With our 911 calling, your call is sent to a national emergency call centre. Regardless of whether your call-back number and the last address registered with us for your TekTalk™ Service are visible to the call centre operator, when you make a 911 call, you will be asked to confirm your location information. The call centre operator will then transfer your 911 call to the emergency response centre nearest your location. You should be prepared to provide or confirm your name, address and call-back number with the operator. Do not hang up unless told directly to do so, and if disconnected, immediately dial 911 again.

15.3 If you are unable to speak during a 911 call and the call centre operator has access to a call-back number and last registered address associated with your TekTalk™ Service, the operator will transfer the call to the emergency response centre closest to that address. In order for emergency services to be dispatched to the correct address in such cases, you must ensure that the registered address that you have provided to us is always the same as the physical address at which the Analog Terminal Adapter/other device you use to obtain your TekTalk™ service (“**TekTalk™ Device**”) is located. Whenever you move the physical location of your TekTalk™ Device or you add a line, you must update your registered address accordingly. Address registrations and updates may be recorded in our customer portal.

15.4 911 calling will not function in the event of a power or broadband outage or if your broadband service (whether obtained from us or another Internet service provider) is suspended or disconnected. Following a power failure or disruption, you may need to reset or reconfigure your TekTalk™ Device prior to utilizing TekTalk™, including 911 calling.

15.5 You must successfully register your location of use for each changed, newly added or newly ported number in order for 911 calling to function as intended. Address registrations and updates may be recorded in our customer portal.

15.6 Improper installation or configuration of your TekTalk™ Device or other Equipment used in conjunction with TekTalk™ Service will prevent your 911 calling from functioning as intended. Immediately following installation of your TekTalk™ Device and TekTalk™ Service and following every power outage, or if you have reason to suspect that anyone has tampered with the TekTalk™ Device or related Equipment or that it has failed, you should make a test call to another telephone number (NOT 911) using your TekTalk™ Service to ensure that it is functioning correctly in case a 911 call will need to be made at some point using TekTalk™. If the TekTalk™ Service is not working correctly at any time, please call technical support at 1.877.779.1575 from another telephone for assistance.

15.7 There may be a greater possibility of network congestion and/or reduced speed in the routing of 911 calls made utilizing TekTalk™ as compared to traditional 911 calls dialed over traditional public telephone networks.

15.8 You should inform any household residents, guests and other persons who may be present at the physical location where you utilize TekTalk™, of the important differences in and limitations of TekTalk™ 911 calling as compared with E911 service, as set out above.

15.9 We do not currently offer Operator Service and so emergency services cannot be accessed through an operator by dialing "0".

15.10 We do not have any control over whether, or the manner in which, calls using our 911 calling service are answered or addressed by any local emergency response centre. We disclaim all responsibility for the conduct of local emergency response centres and the national emergency calling centre. We rely on third parties to assist us in routing 911 calls to local emergency response centres and to a national emergency calling centre. We disclaim any and all liability or responsibility in the event such third party data used to route calls is incorrect or yields an erroneous result.

15.11 You acknowledge and agree that, to the maximum extent allowed by law, the TekSavvy Parties will not be liable for any injury, death or damage to persons or property arising directly or indirectly out of, or relating in any way to 911 calling from your TekTalk™ Service and you agree to indemnify and hold harmless the TekSavvy Parties for any liabilities, claims, damages, losses and expenses, (including reasonable legal fees and expenses) which you or anyone accessing or attempting to access 911 calling from your TekTalk™ Service may suffer or incur, arising directly or indirectly out of or relating to your or that person's failure to obtain access to 911 emergency services.

15.12 By subscribing to our TekTalk™ Service and activating it, you acknowledge all of the limitations of the 911 calling provided through TekTalk™ Service, that you will take all of the corresponding measures described above in light of these limitations, that you accept the

limitations of liability applicable to 911 calling provided through our TekTalk™ Service and that these TekSavvy Terms of Service apply to TekTalk™. If you do not agree with any of the terms and conditions related to TekTalk™, including the limitations and requirements associated with 911 calling provided over TekTalk™, or with these TekSavvy Terms and Conditions of Service, do not subscribe to, or activate, TekTalk™, do not install the TekTalk™ Device or any other Equipment provided in connection with the TekTalk™ Service and call us immediately at 1-877-779-1575 to cancel your TekTalk™ Service, if any such service has been ordered or activated.

16. SECURITY, PRIVACY AND CONFIDENTIALITY

16.1 We are not responsible for corrupted files or “viruses”, “cancelbots”, “trojan horses”, “worms”, or other harmful components (“**Virus(es)**”) which affect you or your Services. It is your responsibility to secure and safeguard your systems through appropriate means (like software available for this purpose) from theft, unauthorized use, or system corruption. If your failure to secure and safeguard your systems causes detriment to our network or to a network we make use of, including our underlying Carriers’, we may immediately cancel your Services.

16.2 We cannot ensure or guarantee the privacy of information you choose to transmit through the Service. Any such use is at your sole risk, and the TekSavvy Parties are relieved from all liability in connection with it. If you do not do so already, consider encrypting your connection through use of a third-party virtual private network.

16.3 Advise us immediately of any security breach, such as compromise of your Account information: Account numbers and passwords, email account passwords, hosted webpage account passwords, and so on. Contact technical support at 1.877.779.1575 so we can change your password and create replacement information.

16.4 We protect your personal information consistent with the our Privacy Policy, available [here in English](#) and [here in French](#). By subscribing to the Service, you consent to the collection, use and disclosure of your personal information to the extent described in the above policy. To access or learn more about your personal information held by us, to make a privacy-related complaint, or to obtain a printed copy of our Privacy Policy, contact our privacy team: privacy@teksavvy.com or Privacy, TekSavvy Solutions Inc., 800 Richmond Street, Chatham, Ontario, N7M 5J5.

16.5 Wherever possible, we seek to site elements of our service that process personal information within Canada, and by Canadian-owned and -controlled companies, in order to avoid its international export. However, certain personal information collected in providing the Services is stored and processed outside Canada, and may be subject to the laws of other jurisdictions. These include, in particular, service providers acting on our behalf, like certain customer support software we use (e.g. HubSpot).

17. ADDITIONAL TERMS RELATING TO INTERNET SERVICE

17.1 You acknowledge and understand that when using home networking, there are certain inherent risks (e.g., other users may gain access to your system or your Services and Accounts). The TekSavvy Companies shall not be liable for any claims or damages relating to home networking, even if the home networking application or service is provided, installed, maintained or supported by us.

17.2. To ensure that shared Internet resources are managed in a way that provides the best Internet experience for the most users, TekSavvy and our underlying Carriers take measures so that, during congested periods during the download day (8 a.m. to 2 a.m.): less-real-time classes of traffic do not impair the use of real-time applications; and users who have used the highest proportion of shared Internet resources that day are the first to be affected by these measures. For more details about traffic management applied to our Internet access services, including measures taken by us and our underlying Carriers, please refer to TekSavvy's Shared Internet Resources Policy, at <https://www.teksavvy.com/policies/legal-stuff/shared-internet-resources-policy/> (English) and <https://www.teksavvy.com/fr/politiques/section-juridique/politique-sur-les-ressources-internet-partagees/> (French).

18. ADDITIONAL TERMS RELATING TO TELEPHONE SERVICE

18.1 You may choose your long distance service provider from those providers that have entered into connection arrangements with us. If you choose to receive local, but not long distance, telephone services from us, we may provide long distance services to you prior to your activation by your chosen long distance company to ensure continued availability of long distance services to you.

18.2 We will make your name, address and telephone numbers available to publishers of paper and electronic telephone directories and to providers of operator services in accordance with legal or regulatory requirements. However, subject to the 911 service provider exception described below, you may opt to have your name, address and telephone number listing information omitted from these directories or services by requesting, and paying for, an unlisted telephone number. These directories or services, however, may receive or obtain your telephone numbers and address from a source other than us. Furthermore, your name, address and telephone numbers will be accessible by 911 service providers, even if you have requested, and paid for, an unlisted telephone number.

18.3 You must supply all facilities and Equipment, including all wiring inside your premises, and all telephone terminal Equipment necessary to connect your facilities and Equipment up to the point where the local telephone company's facilities end and your facilities begin. It is your responsibility to reconnect your facilities and Equipment as necessary after termination of your phone Services.

19. ADDITIONAL TERMS RELATING TO TV SERVICES

19.1 This section sets out additional terms and conditions applicable to your TekSavvy TV service provided by Hastings, and forms part of your Agreement with the TekSavvy Companies.

19.2 TekSavvy TV consists of programming content delivered by Hastings over TekSavvy's Internet connections. Programming content may include various live TV channels offered in subscription packages, including theme packages or à-la-carte, personal video recorder ("PVR") services, pay-per-view ("PPV") services, on-demand ("On-Demand") services, Out of Home Streaming (defined below), interactive services, applications and other content (collectively, "Programming").

19.3 You are only required to include a "basic" service package in your TekSavvy TV subscription. CRTC regulations require Hastings to provide the "basic" service package to all customers. The "basic" service package may change from time to time.

19.4 With the exception of the required “basic” service package, you have the flexibility to choose Programming from the catalogue of add-on packages available on our website or customer portal. Choice of Programming may vary based on the service location from which you are accessing TekSavvy TV and whether you are a residential or business customer.

19.5 In order to use TekSavvy TV, you must have an active Internet service subscription with Hastings’ affiliate company, TekSavvy, with a minimum download speed of 15 Mbps. You must also have a qualifying device or platform with supported hardware and software, or use a set-top box that we provide (“**STB**”). Hastings may, at its discretion, remove qualifying devices and platforms for use with TekSavvy TV, in which case we will provide notice to you as described in Section 3 of these Terms of Service. TekSavvy TV relies on your TekSavvy Internet connection in order to receive Programming and STB software updates from Hastings.

19.6 Other than as authorized by Hastings for Out of Home Streaming and for viewing on certain devices or applications, including third party applications to which your credentials for TekSavvy TV may grant you access, you agree not to access, receive, listen to, or view any of the Programming outside of your private residence (or, if you are a business customer, the physical location of your establishment), which is listed as your service address. We may limit the maximum number of concurrent streams.

19.7 From time to time, the STB may download software updates. These software updates are necessary to improve your TekSavvy TV experience. If you do not agree to receive these software updates, your only remedy is to cancel TekSavvy TV.

19.8 Availability and pricing of TekSavvy TV, including the rental price of the STB and the prices applicable to any and all Programming, is subject to change at Hastings’ sole discretion. Any changes to Services will be performed in accordance with Section 3 of these Terms of Service. This means that Programming channels may be added, suspended from time to time or cancelled permanently, at our discretion.

19.9 You can make changes to subscription-based Programming selections at any time by contacting us by phone or email at the contact coordinates specified in these Terms of Service at Section 28. For billing purposes, any changes to Programming subscriptions will be effective immediately and you will only be billed for a prorated portion of the monthly-billing cycle. In other words, whether you add or remove a programming package, we will only bill you for the time that you maintained an active subscription to the Programming in question.

19.10 All Programming is provided on a “subject to availability” basis. Certain Programming transmitted by Hastings, including sports events, may be “blackout” in your area of reception sometimes for copyright or other reasons. Programming may also be subject to temporary interruption due to causes outside of Hastings’ control (for example, due to an interruption in Internet connectivity). The TekSavvy Companies will not refund charges or credit you for the blackout period or temporary interruptions.

19.11 If you or a member of your household self-identifies as a person with a disability, you will have a 30-day trial period to determine whether TekSavvy TV meets your needs. This trial period begins on the start date on which service begins. During the trial period, you may cancel your Service without penalty if you return your STB.

19.12 All sales of available PPV or On-Demand Programming are final. One-time charges for pay per use services, such as PPV and some On-Demand services, are applied at the current rates at the time of use. If Hastings is unable to provide any PPV or On-Demand Programming that you have ordered, the TekSavvy Companies will credit you the amount charged for that PPV or On-Demand Programming. If permitted by applicable law, Hastings is not responsible for cancelled events or failure to provide any PPV or On-Demand Programming. Certain PPV or On-Demand Programming may only be ordered if you also subscribe to other Programming.

19.13 This paragraph is intentionally left blank.

19.14 You cannot engage in any rebroadcasting, copying, transmission or performance of Programming. Also, you cannot charge any admission or receive consideration (including consideration received by a third party for your benefit) in return for allowing a third party to listen to or view any TV Programming.

19.15 You acknowledge that content including, but not limited to text, software, music, sound, photographs, video, graphics or other material accessed through the Services or the Internet (collectively, the “**Customer Accessed Content**”) is protected by applicable copyrights, trademarks, patents, trade secrets and/or other proprietary rights and laws.

19.16 Your license to use Customer Accessed Content, unless otherwise permitted by applicable laws or by a valid licence to use such content for other purposes, is limited to your own personal, lawful, non-commercial use provided, however, if you are a business customer subscribed to the business Service, you may exhibit Customer Accessed Content in your business establishment. Notwithstanding the foregoing, Customer is not granted any rights to distribute or exhibit the Customer Accessed Content to or at any of the following unless otherwise agreed in writing with the TekSavvy Companies:

- commercial establishment where alcohol is served
- commercial establishment with a legally-determined occupancy of greater than 2,500 individuals
- ‘jumbotrons,’ arena scoreboards or advertising display units, overhead displays, or any other commercial or large-scale display screen intended for live event locations or intended for viewing from attendee paid or free seating or viewing locations
- transportation vehicles, including without limitation, within planes, trains, and automobiles
- temporary public viewing venues, movie theatres, cinemas, playhouses, concert halls, places of public performance, or other places that provide for public viewing
- any establishment or institution providing overnight accommodation or other transient accommodation.

19.17 You further acknowledge that, except where expressly stated otherwise, all Equipment, Software, content, documentation, processes, designs, technologies, materials and all other things comprising the Services are owned by the TekSavvy Companies, our licensors or our suppliers and are protected by applicable copyrights, trademarks, patents, trade secrets and/or other proprietary rights and laws.

19.18 We do not claim ownership of information, materials, software or other content (collectively, the “**Customer Provided Content**”) that you post, upload, input, provide, submit or otherwise transmit to us or any third party, using the Services. However, you agree that by posting, uploading, inputting, providing, submitting or otherwise transmitting the Customer Provided Content to us or any third party, using the Services, you have thereby granted the TekSavvy Companies a royalty-free, non-exclusive license to use, copy, distribute, transmit, display, edit, delete, publish and translate such content to the extent reasonably required to provide the Services to our customers or to ensure adherence to or enforce the terms of this Agreement.

19.19 The TekSavvy Companies may, at their sole discretion, make Out of Home Streaming of TekSavvy TV available with your TekSavvy TV service. If Out of Home Streaming is made available to you, its availability is subject to change and may be discontinued at any time by the TekSavvy Companies at their sole discretion without notice. The channels that are available for Out of Home Streaming are indicated on the channel list published at <https://www.teksavvy.com/services/television/channel-line-up/> in English and <https://www.teksavvy.com/fr/nos-services/television/chaines/> in French. You may only access Out of Home Streaming within Canada. Access to Programming Out of Home Streaming is subject to Hastings having the rights to distribute the Programming outside of your home. As a result, not all Programming that you subscribe to may be available via Out of Home Streaming.

20. EQUIPMENT WARRANTY & RETURNS

20.1 A one year warranty for manufacturing defects applies to all new, purchased Equipment. Faulty new Equipment may be returned within one year from date of the purchase at no charge to the customer. Open box Equipment is sold as-is, subject to the return period in Section 20.2. You are responsible for shipping fees and product price differences for exchanges of Equipment due to firmware issues.

20.2 If you are dissatisfied with Equipment from TekSavvy for any reason, you may ship it back to TekSavvy at your own cost within the first 30 days of active Service. TekSavvy will refund Equipment charges once TekSavvy receives the Equipment and verifies that all components are included, and it is in Good Working Condition. If Equipment is returned with damaged or missing components, TekSavvy may issue only a partial refund.

21. ADDITIONAL TERMS RELATING TO AGREEMENTS WITH CONTRACT PERIODS

21.1 If you agree to subscribe to any of our Services for a Contract Period, you agree to pay us the ETF specified in the Agreement in the event you terminate those Services prior to the expiry of the Contract Period, or if TekSavvy terminates those Services in accordance with Section 11.2. For residential customers, the details of the Contract Period and the potential ETFs are set out in the materials provided to you by email when you first subscribed to these plans or Services, which form part of this Agreement. You acknowledge that the ETF represents a reasonable estimate of the damages that would be suffered by TekSavvy as a result of any early cancellation of the Agreement.

21.2 At the end of the Contract Period, if you do not choose to enter into a new Agreement with a Contract Period, you will continue to receive the same Services for an indefinite term, in

accordance with Section 11.1. The rates charged following expiry of the Contract Period will be TekSavvy's advertised rates for those plans, Services and/or Equipment at that current time. Other than the provisions specific to Agreements with Contract Periods, the Agreement will continue to apply to the provision of the Services.

21.3 You may cancel an Agreement with a Contract Period for any reason within 10 days of receiving confirmation of your order. If you cancel your Services within this 10-day period, you will not be required to pay the ETF specified in the Agreement. However, in recognition of the reasonable expenses TekSavvy has incurred prior to your cancellation, you will be charged the equivalent of the current activation fee we charge for new Services without a Contract Period, including the costs of installing facilities. Any Equipment you have received from TekSavvy will be subject to the return requirements under Section 8.14.

22. IDENTIFIERS

22.1 Any telephone number, Internet Protocol ("IP") address, email address, Webpage address, host name, Account, or access code (collectively, "Identifier") assigned to you by us shall remain our property at all times, and may be changed or withdrawn at any time in our sole discretion. IP addresses may change each time your DSL modem, cable modem or system is powered off, or any time at our discretion.

22.2 We assume no liability whatsoever for any claims, damages, losses or expenses arising out of or otherwise relating to any change in Identifier.

23. NO LIABILITY FOR CONTENT

23.1 Some content, products or services (the "Content") available with or through the Services may be offensive to you or may not comply with applicable laws. You understand that neither we nor any of our affiliates, Carriers or other Affiliated Partners attempt to censor or monitor any such Content. You also understand that such Content may be subject to "caching" at intermediate locations on the Internet when being accessed through the Internet Service.

23.2 You assume total responsibility, liability and risk for access to or use of such Content and for use of the Internet and the telephone network. We and our affiliates, Carriers and other Affiliated Partners assume no liability whatsoever for any claims or losses arising out of or otherwise relating to access to or use of such Content.

24. CHANGE IN TELEPHONE OR CABLE SERVICE

24.1 If a change in your local telephone service is requested from your local phone company or a change in your cable service is requested from your cable company, it is your sole responsibility to advise us of the changes as this could affect the Services you obtain from us. This notification includes moves, regardless of whether your phone number changes or not, changes to your phone number, and any other changes that may occur to your local telephone or cable service. Any applicable cancellation and/or re-installation charges relating to your Services will be charged to your Account.

24.2 Whenever a Service must be moved, unless a self-install option for the Service is permitted by us, you must schedule an appointment for us to move any Equipment required in connection with the Service to be moved, other than items, such as, without limitation, your computer system, for which you are solely responsible.

25. INTELLECTUAL PROPERTY

25.1 All trademarks, copyright, brand concepts, names, logos and designs used by us are intellectual property assets, registered or otherwise, of, or used under license by the TekSavvy Companies. All are recognized as valuable assets of their respective owners, and may not be displayed or used by you in any manner for commercial purposes or copied in any manner for any purpose without the express prior written permission of the TekSavvy Company that owns it.

26. CUSTOMER SUPPORT

26.1 Support is available in a variety of ways:

- Free email support is available in English at: support@teksavvy.com and in French at soutien@teksavvy.com;
- Telephone support for technical issues is available at 1.877.357.2889. The hours of operation for technical support are set out [here in English](#) and [here in French](#), as updated from time to time.
- Telephone support for account/billing issues is available at 1.877.763.5606. The hours of operation for billing/accounting are set out [here in English](#) and [here in French](#), as updated from time to time.

26.2 Questions and problems arising from the installation, operation and use of software and hardware, other than in relation to the basic connectivity to the Services through supported software on systems meeting the minimum system requirements, are outside the scope of our technical support and any such out-of-scope support will be provided only in our sole discretion. From time to time, we may refer you to third parties and third party websites, including without limitation for training, support, maintenance, hardware and software. You understand and agree that all such references are provided as a courtesy only, are without guarantee, are used at your sole risk, and that we shall not be liable for, and hereby disclaim all liability for, such referrals to third parties and their websites, products and services and any damages arising therefrom. Remote technical support is by its nature imprecise. Therefore, you also understand and agree that we shall not be liable for and hereby disclaim any liability for any advice or instructions provided or not provided when you contact our technical support.

27. DISPUTES

27.1 If you have a dispute about Service, Software, Equipment, about this Agreement, or about what we say outside this Agreement, then we want to resolve the dispute quickly and fairly, and will work with you in good faith to do so. Escalate the dispute outside the TekSavvy Companies only if you have tried to work with us, but are unsatisfied with the resolution.

27.2 If you are a consumer or small business with a monthly bill under \$2500, then escalate externally with the Commissioner for Complaints for Telecom-Television Service (www.ccts-cprst.ca, 1-888-221-1687). It is the communications consumer agency designated by the CRTC to resolve consumer and small business disputes about telecommunications services.

27.3 Not applicable to Residents of Québec: Otherwise, the dispute will be determined by single-arbitrator arbitration. Arbitration is much faster than lawsuits, which can last for years. To that end, you agree to opt out of, and to waive any right to start or participate in, a class action

related to a dispute. To begin arbitration, send notice of your dispute to the address in Section 28.

28. CONTACT INFORMATION

28.1 If you have any questions regarding us or the terms and conditions of the Agreement, the Services, or you need to contact us for any other reason, you may do so by one of the following means in English or French:

- Email: info@teksavvy.com;
- Telephone: 1.877.779.1575;
- Fax: 1.519.360.1716
- By writing to: TekSavvy Solutions Inc., Attention: Customer Service, 800 Richmond Street, Chatham, Ontario N7M 5J5.

28.2 Any notice of a claim must be given to the TekSavvy Solutions Inc., Attention: Legal Department, 800 Richmond Street, Chatham, Ontario N7M 5J5.

28.3 Any notice shall be deemed to have been given on the date on which it was sent by the party giving the notice.

29. CHANGES IN REGULATION

29.1 You and we understand that the Canadian Radio-television and Telecommunications Commission, or other regulators, government departments or agencies may impose regulations on IP-based or other services. If new regulations are imposed on us, we are authorized to make changes to the Agreement to reflect the new regulations, and we will post such changes on our website, [here in English](#) and [here in French](#). We retain the right to pass on to you any new regulatory fees or taxes that may be imposed by law or regulation.

30. JURISDICTION

30.1 The Agreement is governed exclusively by and construed in accordance with the laws of the province or territory in which your billing address is located, but if your billing address is outside of Canada, the Agreement is governed exclusively by the laws of the province of Ontario and you submit to the jurisdiction of the courts of Ontario. Please note that your rights and remedies may vary by province or territory.

31. MISCELLANEOUS

31.1 The Agreement, as amended from time to time, constitutes the entire agreement and understanding between you and the TekSavvy Companies for the Services and supersedes all prior agreements written or oral, with respect to the same subject matter.

31.2 Neither the course of conduct between us nor trade practice modifies any provision of the Agreement.

31.3 If any provision in the Agreement is declared to be invalid or in conflict with any such law or regulation, that provision may be deleted or modified without affecting the validity of the other provisions.

31.4 Our failure to enforce strict performance of any provision of the Agreement shall not be construed as a waiver of any provision or right.

31.5 We may assign our rights and obligations under the Agreement without your consent. You may not assign or transfer the Agreement without our prior consent.

31.6 In no event shall we be liable for any failure to comply with the Agreement if such failure results from any condition or event beyond our reasonable control, including, but not limited to, computer hacking, security breach, fire, flood, earthquake, any elements of nature or acts of God, theft, riot, strike or other labour disturbance, pandemic, power failure, action or inaction by a government or a government agency or authority, war, or terrorism.

31.7 The provisions of those Sections of the Terms of Service that are by their nature intended to survive termination of the Agreement, shall survive such termination. For example, and without limitation, the provisions of the Terms of Service relating to our rights to collect amounts owing at the time of Termination of the Agreement, your obligation to return Software and Equipment belonging to us upon termination of the Agreement, timeframe applicable to claims and adjustments for incorrect billing, no warranties, limitations of liability (including without limitation all such bolded provisions throughout the Terms of Service), indemnities (including without limitation all such bolded provisions throughout the Terms of Service), privacy and confidentiality, termination and consequences of termination of the Agreement, dispute resolution, intellectual property, entire agreement, severability, waiver, no modification of Agreement through course of conduct, enurement, assignment and restrictions thereon, survival, language, governing law, provisions relating to the limitations of 911 service and limitations of liability for 911 service, and definitions and provisions relating to the interpretation of the Terms of Service relevant to any of the other provisions that survive the termination of the Agreement.

31.8 The Agreement enures to the benefit of and is binding on you, your heirs and your legal personal representatives and on the TekSavvy Company's respective successors and assigns.

31.9 The parties have required that the Agreement and all documents relating thereto to be drawn up in English. Les parties ont demandé que cette convention ainsi que tous les documents qui s'y rattachent soient rédigés en anglais.

Acceptable Use Policy

Last updated: January 8, 2021

I. INTRODUCTION

TekSavvy Solutions Inc. and its various affiliates and subsidiaries (collectively “we”, “us”, “our”) are committed to being responsible network citizens. To assist us in protecting the usefulness and enjoyment of the Internet, you agree to abide by the terms of this Acceptable Use Policy (the “AUP”). Any violation of this AUP will constitute a violation of the terms of the Terms and Conditions of Service (“Terms of Service”), which may be viewed [here in English](#) and [here in French](#) and form part of your End-User Service Agreement (“Agreement”) with us, and such violation may result in the termination of such Agreement and/or suspension of your Service thereunder.

IF YOU DO NOT AGREE TO BE BOUND BY THE TERMS OF SERVICE AND THIS AUP, AS AMENDED FROM TIME TO TIME, YOU SHOULD IMMEDIATELY STOP USING THE SERVICES AND NOTIFY TEKSAVVY THAT YOU ARE TERMINATING THE SERVICES.

If you have any questions about this AUP, by one of the following means:

- Email: info@teksavvy.com (English or French);
- Telephone: 1-877-779-1575 for English service or 1-800-368-6909 for French service;
- Fax: 519-360-1716; or
- By writing to: TekSavvy Solutions Inc., Attention: Customer Service, 800 Richmond Street, Chatham, Ontario N7M 5J5.

For the purposes of this AUP, "Internet host" means any computer or electronic device connected to the Internet. Terms not otherwise defined in this AUP will have the meanings set out in the Terms of Service.

II. GENERAL

Your Service and equipment we provide in connection with it are solely for consumer use, and not to be used to operate a telecommunications service provider or advertising business. Nor is it provided for commercial purposes.

Harassing or abusive language or actions, whether verbal, written or otherwise, of our employees, suppliers, agents and representatives is strictly prohibited and will not be tolerated.

We do not allow use of our Services for, and may interrupt or cancel your service if used for, any of the following:

Invading another person's privacy;

Access or attempt to access any Internet host, computer, software or data belonging to any other person without that person's authorization, or use any tools designed to facilitate such access, such as "packet sniffers";

Sending unsolicited telecommunications that either: do not clearly comply with anti-spam and unsolicited telecommunications rules, including the law known as CASI and the CRTC's UTRs; or, in our sole judgment, cause significant disruption or elicit complaints from other users. The sending of bulk unsolicited commercial email, and the use of automated dialers to make unsolicited promotional voice calls, are examples of such prohibited use.

Restricting or inhibiting any other user from using or enjoying the network, impairing the operations or efficiency of a Service, or creating an unusually large burden on our networks.

Exceeding any limitations of the Service or any applicable and lawful requirement imposed by another provider of telecommunications services providing services that are an input into the service we provide to you.

Harassing others in any way, such as defaming, abusing, stalking, threatening or otherwise violating their legal rights.

Impersonating another, or engaging in any other fraudulent activities, such as, forging a digital or manual signature.

Uploading or downloading, transmitting, posting, publishing, disseminating, receiving, retrieving, storing or otherwise reproducing, distributing or providing access to information, software, files or other material that: (i) are protected by copyright or other intellectual property rights, without prior authorization from the rights holder(s); (ii) are defamatory, obscene, child pornography or hate literature; (iii) constitute invasion of privacy, appropriation of personality, or unauthorized linking or framing; or (iv) are otherwise unlawful.

Falsifying or deleting any author attributions, legal or other proper notices or proprietary designations or labels of the origin or source of software or other material contained in a file.

Transmitting, posting, publishing, disseminating, receiving, retrieving, storing or otherwise reproducing, distributing or providing access to any files, programs or information designed to assist users in defeating copy-protection, registration and any other anti-theft mechanisms associated with commercial or shareware programs.

Transmitting, posting, publishing, disseminating, receiving, retrieving, storing or otherwise reproducing, distributing or providing access to any files, programs or information (including, without limitations, guessing programs, cracking tools or network probing tools) designed to assist users in compromising the security of the Service, our network or telecommunications services.

Transmitting, posting, publishing, disseminating, receiving, retrieving, storing or otherwise reproducing, distributing or providing access to any files, programs or information designed to assist in the fraudulent use of telecommunications services.

Interfering with computer networking or telecommunications systems and/or service to or from any Internet user, host, server or network, including but not limited to compromising the security of or tampering with system resources or accounts, denial of service attacks, overloading a service, improper seizure and abuse of operator privileges ("hacking") or attempting to "crash" a host, disrupting sessions of other Internet users or consuming excessive amounts of central processing unit time, memory or disk space;

Using an Internet host's resources in a manner which is not authorized by its administrators. This includes mail relaying, transmitting chain letters, make-money-fast or pyramid style schemes of any sort.

Posting or transmitting any information or software which contains a virus, "cancelbot", "trojan horse", "worm" or other harmful or disruptive component.

Unless you have purchased Services that are specifically designed and authorized to support such functionalities, operating a server in connection with the Services including but not limited to mail, news, file, gopher, telnet, chat, web, or host configuration servers, multimedia streamers, or multi-user interactive forums.

Reselling any of the Services or using the Services other than for your own personal purposes. Without limiting the foregoing, you agree that you will not use the Services to provide Internet access or any other feature of the Services to any third party.

Transmitting, posting, receiving, retrieving, storing or otherwise reproducing, distributing or providing access to any program or information constituting or encouraging conduct that would constitute a criminal offence or give rise to civil liability.

Violating or breaching any applicable laws and/or regulations.

III. ELECTRONIC MAIL

Our email service, as further described in your Agreement, is for your use. You are solely responsible for the email you send and receive through the service; may not transfer, sell, or licence the service's use to others; and agree to use it both legally and responsibly. That means that you won't, for instance, use it to violate Canada's anti-spam legislation, disrupt the TekSavvy network or servers, or inhibit others from using network services.

First, on spamming. In the event that you maintain one or more bulk "opt-in" email lists, you must have a way to confirm subscriptions and be able to provide those confirmations where required. If a bulk email list you maintain using TekSavvy resources is brought to our attention, and you can't demonstrate that you have those confirmations, then we may consider your bulk emailings to be unsolicited and therefore to violate this AUP.

Second, on enforcement. We may need to act on complaints we receive, by requiring a user to set an upper limit on the number of recipients of emails they initiate, and on the volume of messages a user sends or causes to be received. If we receive convincing complaints that leads us to decide you are clearly abusing our service, and you can't rebut the evidence we are provided when asked to, then we may no longer make the service available to you.

To be clear: neither we, nor any of our suppliers, have any obligation to monitor the email service. But when we receive complaints, we may take those that seem well-founded up with end-users. And, at our sole discretion, we may terminate your access to the email service at any time, and without notice, to ensure that we remain responsible network citizens.

Third, on government access. We could be legally obligated to monitor an account, by someone with the judicial or statutory authority to compel it. We test the degree to which we are so obligated vigorously, and unless specifically prohibited, will let you know about it as soon as possible. As of August 30, 2016, TekSavvy had never been required to undertake such monitoring.

IV. NEWSGROUPS / DISCUSSION FORUMS

In addition to the general terms set out above, while posting to newsgroups or any other discussion forum, you are prohibited from conducting activities that include, but are not limited to:

Posting advertisements, commercial or unsolicited messages of any kind, unless expressly permitted by the charter or FAQ of the applicable newsgroup or discussion forum.

Posting binary or excessively large files of any kind, unless expressly permitted by the charter or FAQ of the applicable newsgroup or discussion forum.

Posting substantially identical messages to more than ten newsgroups.

Attaching an excessively long signature to your messages.

Forging the headers of your postings in any way.

Newsgroup and forum postings must comply with each newsgroup's or discussion forum's respective charter or FAQ.

V. INTERNET RELAY CHAT ("IRC")/CHAT

In addition to the general terms set out above, while using IRC or any other chat service, you are prohibited from conducting activities that include, but are not limited to:

Sending messages that include advertisements or commercial content of any kind in an unsolicited matter.

Attempting a "denial of service" attack either automated via a bot or conducted manually.

Additionally, while using an IRC Server or any other chat service, you must be in full compliance with the rules and regulations set out by the server administrator.

VI. NETWORK / SECURITY

In addition to the general terms set out above, you are prohibited from using the Service for activities that include, but are not limited to:

Sharing of your Account userid(s) and password(s) for the purpose of concurrent login sessions from the same Account.

Causing an Internet host to become unable to effectively service requests from other hosts.

Analyzing or penetrating an Internet host's security mechanisms.

Forging any part of the TCP/IP packet headers in any way.

Committing any act that may compromise the security of your Internet host in any way.

As further set out in your Agreement, you are solely responsible for the security of your system and Account. We will offer full co-operation with law enforcement agencies in connection with any investigation arising from a breach of this AUP.

In the event that numerous complaints are received by our staff in regards to any breaches of this AUP, at our discretion a processing fee per complaint received, in addition to an

administration fee, may be applied to your Account. This remedy is in addition to any other remedy that we may apply for any single or repeated complaints or while we are investigating any such complaint(s), and such additional remedies may include, without limitation, suspension or termination of the provision of the Service or any part thereof to you and/or terminating the Agreement, which may be done at any time and without prior notice to you.

VII. MISCELLANEOUS

We may at any time and from time to time amend this AUP by posting notice of the amended AUP on our website(s) or by sending you notice via email to the primary email account associated with your Account, and such modification shall be effective as of the earlier of the date of posting of the modified AUP or the date identified in the email, as applicable.

The AUP is governed exclusively by and construed in accordance with the laws of the province or territory in which your billing address is located, but if your billing address is outside of Canada, the AUP is governed exclusively by the laws of the province of Ontario and you submit to the jurisdiction of the courts of Ontario. If any provision in this AUP is declared to be invalid or in conflict with any such law or regulation, that provision may be deleted or modified without affecting the validity of the other provisions.

Our failure to insist upon or enforce strict performance of any provision of this AUP shall not be construed as a waiver of any provision or right.

The parties have required that this Acceptable Use Policy and all related documents be drawn up in English. Les parties ont demandé que cette Politique D'utilisation Acceptable ainsi que tous les documents qui s'y rattachent soient rédigés en anglais.

Shared Internet Resources Policy

Last updated: August 31, 2020

1. What do you mean by “shared Internet resources”?

TekSavvy provides Internet access. Providing Internet access means making use of shared network resources: the Internet is all about aggregating traffic on shared links, and processing it through shared routing resources.

One of the things that makes the Internet awesome is that it puts very few restrictions on what end-users do with their Internet access. That openness, which some people call the “end-to-end principle”, gives everyone the freedom to innovate and interact without having to ask permission. It also gives them full access to use as much or as little as they need of those shared Internet resources. Someone who needs more of the shared upstream link will open more sessions in order to demand more of it. Someone who needs less will open fewer sessions and demand less. The Internet is, quite literally, based on sharing.

2. Why do you need a policy on shared Internet resources?

We have always had to decide how to manage our shared Internet resources. Until recently, though, we didn’t have a formal policy on how to do so. We did employ a range of measures, like time-of-day incentives and a focus on domestic interconnection. But the centerpiece of our unwritten policy was a very simple concept: provision all the upstream bandwidth we need to minimize congestion.

There were two problems with that policy.

First, it’s not sustainable. No matter how much bandwidth we provision, unusual network events like a new Netflix release or a major new download can and, in many cases, will congest it. Put simply, Internet traffic is growing very, very quickly; peak usage events are shooting past average levels by greater and greater degrees; and every user always has the ability to command extra resources by opening multiple parallel sessions. All of that has the potential to degrade end-users’ experiences significantly and increasingly, especially when those experiences involve real-time applications like voice-over-IP or streaming media.

Second, even were it possible to provision enough upstream bandwidth that no network event and no user behaviour could saturate it, it wouldn’t be sustainable, because that approach is expensive in a way that wastes resources. “Throw more bandwidth at it” is an easy policy to implement, but it forces every user to chip in for all of the bandwidth needed to handle the activity of any user.

That is especially hard to sustain when bandwidth is extremely costly. For some years now, TekSavvy has argued that the mandated bandwidth rates we pay to wholesale network access providers have been set far too high. Those wholesale rates are divided into two parts. One is the access part. The other is, in most cases, the size of our point of interconnection with the wholesale carrier, which determines how much capacity gets to the access part – and varies from \$10.36 monthly per Mbps (Bell Canada), to \$11.81 (Cogeco), to \$14 (Rogers), to \$20.31 (Videotron).

From 2016 to 2019, the CRTC undertook a comprehensive review of both access rates and bandwidth rates at the point of interconnection. In Telecom Order 2016-396, the CRTC lowered capacity rates on an interim basis to ensure that interim rates were not based on overstated costs, as it was concerned that wholesale providers' cost studies were not conducted in accordance with costing principles. The CRTC lowered capacity rates to \$1.4908 monthly per Mbps (Bell Canada), to \$3.2373 (Cogeco), to \$3.1968 (Rogers), to \$3.9536 (Videotron). They set final capacity and access rates in August 2019 that would be sustainable for competition, but the large carriers have appealed that decision. We're fighting those appeals, but it is a slow process. In the meantime, the cost of bandwidth remains high (not to mention the impact of covid19), usage continues to go up, and simply throwing more bandwidth at our shared resources may not be sustainable without either hiking prices significantly or managing the capacity we do have in a smarter way.

The SIR Policy is TekSavvy's attempt to develop a smarter way to do things when the network gets congested during the download day (8 a.m. to 2 a.m.) period. As of August 2020, TekSavvy has not implemented the SIR Policy. That being said, some measures are in place that may affect our customers' usage, including port blocking for security and traffic management measures imposed by our underlying carriers.

3. Okay, so who is affected by the SIR Policy?

TekSavvy is committed to making sure we always provision enough shared bandwidth to serve end-users under ordinary circumstances. That remains the centerpiece of our SIR Policy. Now, though, the SIR Policy also adds two layers of best-efforts traffic management to congested periods that occur during the 8 a.m. to 2 a.m. period, in order to make sure we keep user experience great and prices low.

First, we will take steps to make sure that on the rare occasions where there is congestion, it least affects the most real-time protocols, like voice-over-IP and streaming media. Instead, less-real-time applications, like peer-to-peer file transfers, will be more likely to be affected. From what we have seen, even less-real-time applications will not be much affected. Few users—if any—should see any perceptible change in their experience, and more users will see a positive improvement in the use of real-time applications in congested circumstances. A little bit of management can go a very long way.

Second, even when congestion does occur, slightly affecting less-real-time applications, it is those who have used the most bandwidth that day whose use of those applications will be the first to be affected by these measures.

We will continue to do our best to make sure that there is no congestion at all. Most of the time, we have been successful. But we are now also acknowledging that, no matter what we do, unusual events or behaviour may cause congestion – and we are working to ensure that, in those circumstances, user experience and user costs are affected as little as possible.

4. When will the SIR Policy be in effect?

The SIR Policy is not yet implemented. As explained above, in October 2016, the CRTC lowered capacity rates on an interim basis to ensure that interim rates were not based on overstated costs, as it was concerned that wholesale providers' cost studies were not conducted in accordance with costing principles. In January 2017, TekSavvy reduced its pricing for almost

all existing customers based on these interim rate reductions. In August 2019, the CRTC set final rates but the big carriers appealed that decision. As long as those appeals are underway, TekSavvy continues to pay inflated rates. TekSavvy is awaiting those wholesale rates to be finalized to determine how to proceed with implementing the SIR Policy.

Our plan was to phase in the SIR Policy gradually. We had intended to first apply the SIR Policy on our highest-cost-bandwidth platforms, Rogers and Videotron, on December 1, 2015, and provided advance notice to all end-users that would be affected by the first phase of the SIR Policy.

We do not expect the SIR Policy to be implemented prior to September 2020. If we do implement it, we expect to do so first on the Rogers and Videotron access platforms.

In subsequent phase, the SIR Policy could apply to service provisioned over our other platforms: Cogeco, Shaw, Bell, and TELUS. We will notify affected end-users well in advance of implementing the policy to these platforms, so that you always know how you are affected.

In the same way, as more detailed implementation is logged, we will document it in greater depth.

5. When the SIR Policy leads to traffic management, what kind of traffic does it affect?

Traffic management will only take place during the ordinary download day of 8 a.m. to 2 a.m. and, within that period, only when a network is congested. In those circumstances, first to be affected will be the use of less-real-time protocols, by those who have made the greatest use of shared network resources that day. We do not expect anyone to be significantly affected: but that is the sequence in which it will occur.

6. How does the SIR Policy affect TekSavvy end-users' Internet experiences?

We expect that it will improve most end-users' experiences, allow us to stabilize pricing, and lower the cost of most unlimited packages.

The SIR Policy calls for traffic management only when there is congestion on a network during the 8 a.m. to 2 a.m. period. Even then, the traffic management affects only those who have made the heaviest use of the network over the course of that day. And even then, the traffic management seen by those users is further restricted to the least-real-time traffic that is least sensitive to millisecond timing. None of these measures involves any rate-limiting or speed caps.

For most end-users, those changes will mean better access to shared Internet resources for real-time applications like voice-over-IP and streaming media. A very small subset of our user base will ever experience traffic management – and many of them are not likely to notice it.

7. I'm not really feeling the traffic management piece of your SIR Policy. Can I opt out?

Please know that our traffic management measures are as non-invasive and non-intrusive as we can possibly make them. However, once the SIR Policy is in effect, users with capped packages, and who'd otherwise be subject to emergency traffic management if peak-period congestion happens, can opt out in exchange for a \$5 monthly fee. At present, we only

contemplate turning on this kind of congestion management on our highest-cost-bandwidth access platforms (Rogers and Videotron), so it only makes sense to opt out if your Internet is provisioned on one of those access platforms. If your service is provisioned over the Rogers or Videotron access platform, you can opt out by calling us at 1-877-779-1575 or through MySavvy (mysavvy.teksavvy.com). We'll roll out the opt-out functionality across other access platforms, at the same pace as we roll out any required traffic management itself.

Now, recall that one of the reasons we have implemented this formal SIR Policy is to get smarter about how we control shared costs, in order to be fair to our whole user base: hence the charge. For that reason, users with unlimited packages will not have the ability to opt out of traffic management.

8. But then what happened to Zap the Cap?

We phased out the Zap the Cap option that allowed users to turn their capped plans into unlimited plans in exchange for accepting slower-at-peak speeds. Instead, we dropped the price of some of our unlimited plans significantly. Even without implementing it, a smarter SIR Policy let us do that.

9. I thought TekSavvy was all about net neutrality.

We are. Back in 2008, TekSavvy organized a rally on Parliament Hill in support of network neutrality. Our views haven't changed. We're simply an intermediary, and we have no business telling our users what to do or snooping on what you actually do. We haul bits to and from end-users, in as neutral a fashion as possible.

But that doesn't mean we want to charge you higher prices than we need to, nor cause users of real-time applications to experience congestion when they don't have to. Our SIR Policy formalizes our approach to optimizing those things. TekSavvy's measures are applied only where necessary, and look only at classes of traffic. We don't look at content, don't look at where traffic is coming from, and don't look at where it's headed.

10. What are the privacy implications—does this mean TekSavvy is tracking, retaining, or reporting what I do on the Internet?

At TekSavvy, we take privacy very seriously. We have no interest in tracking what you do. We have no interest in looking at any of the content that passes over your network. We certainly have no interest in monitoring your online activities. While we respect all of our legal obligations, we're an intermediary. That's all.

We do measure your traffic volume, because we make capped plans available as well as unlimited ones. We do analyze protocols at the aggregate level, because we want to make sure congestion doesn't cripple real-time applications, and that we don't waste money buying bandwidth we don't need. But all of that analysis is done on the fly, and discarded immediately. It's none of our business.

11. Is there any other traffic management that TekSavvy end-users should know about?

Yes.

First, on all TekSavvy networks, we block traffic associated with three ports, 25 (outbound), 53 (inbound), and 1900 (inbound), which are typically associated with network attacks. Outbound port 25 traffic, associated with TCP SMTP communications, is vulnerable to concurrent connection attacks and spam abuse, so only connections to TekSavvy's SMTP server are permitted. Inbound port 53 traffic, associated with UDP DNS server communications, is vulnerable to DNS denial-of-service and related attacks. Inbound port 1900 traffic, associated with Microsoft's Simple Service Discovery Protocol, is similarly vulnerable to a range of distributed DOS-style attacks. If you have a specific requirement requiring that these ports be maintained open, please contact us.

Second, TekSavvy is being forced by a court order to block access to certain domain names and IP addresses associated with a video streaming service called GoldTV. TekSavvy is appealing that order, but in the meantime we are required to block certain sites. When TekSavvy customers try to access a blocked page, they are redirected to a page with information about the court order and a current list of the blocked sites. Anybody can access that information page [here](#).

Third, most of our end-users are provisioned over wholesale network access acquired from third-party carriers. In most cases, the CRTC requires third-party carriers disclose in their wholesale access tariffs the technical Internet traffic management practices (ITMPs) they apply to wholesale services. Wholesale-based providers like TekSavvy are, in turn, required to provide their retail customers with information about those technical ITMPs. In keeping with this requirement, we outline the traffic management practices which our third-party carriers apply to the wholesale services we purchase, based on their wholesale access tariffs as of 22 July 2020. Because most third-party carriers have chosen to deliver wholesale network access at the Internet layer, our end-users are necessarily subject to the following traffic management practices of their underlying carrier described below:

- **Bell** does not indicate in their tariff that they apply any technical Internet traffic management practices to their wholesale network access services.
- **Cogeco** does not indicate in their tariff that they apply any technical Internet traffic management practices. Cogeco indicated in November 2016 that they stopped applying technical Internet traffic management in 2010. Since then, they have not notified us of any new Internet traffic management practices.
- **Rogers** introduced a technical ITMP to its tariff in May of 2020. The tariff describes the ITMP vaguely as a temporary constraint of an end-user's access to shared resources, regardless of the application used, that would present itself as a restriction of Internet speeds and is applicable only during times of emergency or high demand. The tariff goes on to say that only end-users, including wholesale TPIA end-users such as TekSavvy's, who disproportionately consume shared resources may have their service affected by this ITMP. Rogers later advised, through filings with the CRTC, that it began testing ITMPs similar to that described above as early April 13, 2020. Rogers has disclosed that they are deploying a traffic management measure to customers' upload traffic on wireline Internet service plans with a maximum upload speed of 10 Mbps or higher should a customer engage in a volume of upload activity over a sustained period of time such that it negatively impacts, or is likely to negatively impact, the Internet

experience of other customers. The traffic management measure temporarily reduces a customers' maximum upload speeds.

- **Shaw** states in their tariff that their retail and wholesale network access services are equally subject to Internet traffic management practices to address upstream congestion. This practice is applied while standard network expansion activities are undertaken to increase bandwidth availability. In the event of significant network congestion on a node, Shaw may reduce upstream bandwidth allotted to P2P applications to 80 Kbps per end-user. They further specify that their technical traffic management practices "are not applied to downstream data transfer, real-time interactive or time-sensitive Internet applications."
- **TELUS** does not indicate in their tariff that they apply any technical Internet traffic management practices to their wholesale network access services.
- **Videotron's** tariff indicates that its wholesale network access is, at speeds of 20 Mbps upload speeds or higher (managed tiers), subject to measures that Videotron has explained are to prevent users from congesting shared "upload channels". Every 15 minutes, a system checks the usage rate for each upload channel. If the usage rate has reached a threshold beyond which congestion is imminent, the system identifies the 20 Mbps, 30 Mbps, and 50 Mbps upload managed tier modems on that channel that have uploaded a statistically significant amount of data. Depending on the severity and duration of the congestion, uploading speed may be slowed for these modems. When the amount of data uploaded by the modem is diminished or the transmission of data goes back to a rate that does not cause congestion, uploading will return to its usual priority. According to Videotron, these measures are applicable at all times.
- **Eastlink's** tariff indicates that it has implemented technical ITMPs to address congestion caused by non real-time and/or latency insensitive traffic through the use of deep packet inspection equipment. It further explains that these ITMPs are time-of-day sensitive to accommodate fluctuating network traffic levels and apply to both retail and TPIA end-users like TekSavvy.

Finally, while carriers are generally required to provide notice of ITMPs, there is an exception for ITMPs that are necessary to protect network integrity against unpredictable and temporary surges in traffic. Those ITMPs are not required to be disclosed to end-users or even to third-party providers like TekSavvy. In either of those circumstances, TekSavvy would be unable to provide its end-users information about those technical ITMPs unless the third-party carrier chose to disclose the ITMPs' application despite having no requirement to do so.

- During the covid19 pandemic, Shaw made TekSavvy aware that it was applying a temporary ITMP in Lillooet, British Columbia in response to network congestion to protect the integrity of its network and to ensure proportional network access for all end users in that area.
- Rogers submitted to the CRTC that its technical ITMPs outlined above were also applied during a time of emergency and unpredictable traffic patterns and therefore did not require disclosure however, TekSavvy and others challenged Rogers' position.

TekTalk 911 FAQ

Last updated: September 15, 2020

Does TekTalk™ provide access to 911 Services?

Yes, we do offer access to emergency 911 services, but there are some differences and limitations in how 911 calling via TekTalk™ operates relative to 911 calling via traditional telephone services.

How does 911 calling via TekTalk™ differ from the traditional telephone services?

With traditional 911 telephone services, your call is sent directly to the nearest emergency response centre. In addition, your call-back number and last address are visible to the emergency response call-centre. With 911 calling via TekTalk™, your call is sent to a national emergency call-centre. Whether or not your call-back number and the last address registered with us for your TekTalk™ Service are visible to the emergency call-centre operator, you will be asked to confirm your location. The call-centre operator will then transfer you to the emergency response centre nearest your location. You should be prepared to provide your name, address and call-back number with the operator. Do not hang up unless told directly to do so.

What happens if I am unable to speak during my 911 call?

If you are unable to speak during a 911 call, and the call-centre operator has access to a call-back number and last registered address associated with your TekTalk™ Service, the operator will transfer the call to the emergency response centre closest to that address. In order for emergency services to be dispatched to the correct address in such cases, you must ensure that the registered address that you have provided to us is always the same as the physical address where your TekTalk™ service is located. Whenever you move the physical location of your TekTalk™ Device or you add a line, you must update your registered address accordingly; please contact our support at **1-877-779-1575** or chat using the button below.

What happens if my 911 call gets disconnected?

If your 911 call gets disconnected, you should immediately dial 911 again.

Does network congestion cause any problems with 911 calling?

It is possible that there may be a reduction of the speed in the routing of 911 calls via TekTalk™ during periods of heavy network congestion.

What happens to 911 calling if there's a power or broadband outage, or if my broadband is disconnected?

911 calling will not function in the event of a power or broadband outage. Further, following a power failure or disruption, you may need to reset or reconfigure your TekTalk™ Device prior to completing calls, including 911 calls.

Do I need to register my address for 911 calling to work?

In order for TekTalk™ 911 calling to function as intended, yes, you will need to register your address for each changed, newly added or newly ported number. To register your address please contact our support at **1-877-779-1575** or chat using the button below.

Can faulty installation affect 911 calling?

Yes, improper installation or configuration of a TekTalk™ Device will prevent 911 calling from functioning as intended.

What can I do to prevent improper installation of a TekTalk™ Device?

Immediately following installation of your TekTalk™ Device, and following every power outage, you should immediately make a test call from your device to ensure the service is functioning correctly (DON'T CALL 911 EXCEPT FOR EMERGENCIES).

What should I do if my TekTalk™ Service is not working?

If your TekTalk™ Service is not working, contact Technical Support at:

- 1.877.779.1575
- Online through our [community](#).

Why might my 911 Service not work properly?

TekTalk™ 911 Service might not function correctly, or at all, for the following reasons:

- If your hardware fails, is not configured correctly, or does not meet our requirements
- In the event of a high-speed Internet outage
- In the event of network or power failure
- If you tamper with or, in some cases, move the hardware
- Following suspension or termination of your account

Can I access emergency services through the operator?

No, TekSavvy and TekTalk™ do not currently offer any operator services.

Is TekSavvy responsible for the completion of 911 calls over TekTalk™?

No, we do not have any control over whether calls using our 911 service are answered by any local emergency response centre. We are not responsible for the conduct of local emergency response centres and the national emergency calling-centre. We rely on third parties to assist us in routing 911 calls to local emergency response centres and to a national emergency calling centre. Since we rely on third parties to assist us, we deny any and all liability in the event that

the third party data used to route the calls is incorrect.

Can my TekTalk™ 911 Service be restricted, suspended, blocked or terminated without my consent?

Yes, TekSavvy reserves the right to do this in any of the following instances:

- You are in breach of TekSavvy's Terms and Conditions
- You exceed your prescribed credit limit
- You exceed the reasonable usage limits
- You have given false, misleading or out-dated information to TekSavvy
- We suspect fraudulent, unlawful or improper usage
- You harass, threaten or abuse us or our employees/agents
- You fraudulently or improperly seek to avoid payment to us
- We need to install, maintain, inspect, test, repair, remove, replace, investigate, protect, modify, upgrade or improve the operation of the Services, the hardware or our facilities or networks
- Any account or service on which TekTalk™ depends is terminated for any reason
- We reasonably believe that there is an emergency or extreme circumstance that would warrant such action

How can I reregister my restricted, suspended, blocked or terminated TekTalk™?

First, you should check to see if you have an outstanding balance that needs to be paid. If the problem persists, please contact Technical Support at:

- 1.877.779.1575
- Online through our [community forum](#).

Cancellation Policy

Last updated: January 8, 2021

Cancellation of Services

Requests for cancellation must occur over the phone or through email. Cancellations can only be requested by the account holder and must be submitted no more than 30 days in advance of the requested cancellation date. All cancellations are final.

Please allow 5 business days for cancellations to be processed.

After cancellation, refunds for unused prepaid fees will be issued by cheque, electronic funds transfer (EFT), or the credit card originally charged within 14 days. The refund will be calculated based on the number of days left in the monthly billing cycle after the cancellation date. Any postpaid services used before the cancellation date (like bandwidth overages and long-distance charges), and any other outstanding amounts, will be billed on a final invoice.

Refunds for “Does Not Qualify”

In cases where a customer’s address does not qualify for service and upfront fees have been paid, the customer account will be issued a full refund, including service, shipping fees and hardware and invoiced service fees. TekSavvy will make every effort to contact the account holder in this situation.

Shipping and hardware fees will be refunded once TekSavvy receives the hardware and verifies that all components are returned and it has not been damaged. If hardware is returned with damaged or missing components, TekSavvy may issue only a partial refund.

Cancellation Prior to Installation

For a full refund of activation fees and monthly service fees, the account holder must cancel their order at least 48 hours prior to their scheduled installation.

Cancellation requests received less than 48 hours prior to the scheduled installation will be refunded monthly service fees. Activation fees will not be refunded.

Hardware charges will be refunded once TekSavvy receives the hardware and verifies that it has not been damaged.

Shipping fees are non-refundable.

Downtime Courtesy

Your account must have gone through extensive troubleshooting to be eligible to receive any refund or downtime credit. To qualify for downtime courtesy credit the issue must be on the vendor side, and not related to customer equipment, wiring or other on premise problems.

Upon verification of eligibility the account holder is entitled to an account credit of the value of the downtime. The downtime courtesy credit will be issued directly to the customer account on their next invoice.

Hardware Warranty & Returns

The one year manufacturer's warranty applies to all hardware. Faulty equipment may be returned for one year from date of the purchase at no charge to the customer.

Open box equipment is sold as-is and has a 90 day warranty.

The customer is responsible for shipping fees and product price difference for exchanges of equipment due to firmware issues.

If you are dissatisfied with hardware from TekSavvy for any reason, you may ship it back to TekSavvy at your own cost within the first 30 days of active service. TekSavvy will refund hardware charges once TekSavvy receives the hardware and verifies that all components are included and it has not been damaged. If hardware is returned with damaged or missing components, TekSavvy may issue only a partial refund. A \$25 restocking fee will apply to hardware that you choose to return to TekSavvy after the first 30 days of active service.

Refunds will not be issued for hardware returned more than 90 days after your service is installed. Customers on a rent-to-own ("RTO") arrangement for hardware will have two options after 90 days: (1) return the hardware and stop making any further RTO payments – no refund will be issued for payments already made; or (2) keep the hardware and pay out the remaining RTO balance in one full payment or by continuing payments.

Privacy Policy

Last updated: September 19, 2023

I. INTRODUCTION

This document was last updated on November 1, 2017, to add detail about how we limit disclosures of personal information, and to update some language used throughout the document (e.g., replacing references to TekSavvy's "Privacy Ombudsman" with "Data Protection Office").

II. SUMMARY

This is TekSavvy's Privacy Policy. For more information about TekSavvy's privacy practices, please consult our Privacy FAQ.

TekSavvy Solutions Inc. ("TekSavvy") and its subsidiaries and affiliates (collectively "TekSavvy Companies", and each individually "TekSavvy Company") provide a broad range of telecommunications services to customers, including Internet access, and local and long distance services in Canada.

The TekSavvy Companies (as defined in Part IV below) are committed to maintaining the privacy, confidentiality, security and accuracy of customer and employee personal information.

The TekSavvy Privacy Policy ("Privacy Policy") is a formal statement of principles and guidelines concerning the minimum requirements for the protection of personal information provided by the TekSavvy Companies to their customers and employees. The objective of the Privacy Policy is responsible and transparent practices in the management of personal information, in accordance with the Canadian Standards Association (CSA) Model Code and federal privacy legislation as set out in the Personal Information Protection and Electronic Documents Act, S.C. 2000, c.5, as amended (PIPEDA).

III. SCOPE AND APPLICATION

There are ten principles that form the basis of the Privacy Policy. Each principle must be read in conjunction with the accompanying commentary which has been tailored in accordance with PIPEDA to reflect privacy issues specific to the TekSavvy Companies.

The Privacy Policy applies to all personal information about customers and employees of the TekSavvy Companies that is collected, used or disclosed by the TekSavvy Companies. The Privacy Policy applies to the management of personal information in any form whether oral, electronic or written. The Privacy Policy does not impose any limits on the collection, use or disclosure of the following information by the TekSavvy Companies:

- (i) information that is publicly available; or
- (ii) the name, title or business address or telephone number of an employee of an organization.

The ten principles that form the basis of the Privacy Policy are interrelated and the TekSavvy Companies shall adhere to the ten principles as a whole. Each principle must be read in conjunction with the accompanying commentary. As permitted by PIPEDA, the commentary in

the Privacy Policy has been tailored to reflect personal information issues specific to the TekSavvy Companies.

The application of the Privacy Policy is subject to the requirements or provisions of any applicable legislation, regulations, tariffs or agreements, or the order or determination of any court or other lawful authority, including any applicable regulations, orders or determinations of the Canadian Radio-television and Telecommunications Commission.

IV. DEFINITIONS

Collection - the act of gathering, acquiring, recording or otherwise obtaining any personal information from any source, including third parties, by any means.

TekSavvy Companies - TekSavvy Solutions Inc. and Hastings Cable Vision Ltd.

Consent – voluntarily agreeing to the collection, use and disclosure of personal information for a defined purpose. Consent can be either express or implied and can be provided directly by the individual or by an authorized representative. Express consent can be given orally, electronically or in writing but is always unequivocal and does not require any inference on the part of the TekSavvy Companies. Implied consent is consent that can reasonably be inferred from an individual's action or inaction.

Customer - an individual who uses, or applies to use, a TekSavvy Company's products or services or otherwise provides personal information to a TekSavvy Company in the course of a TekSavvy Company's commercial activities.

Disclosure – the act of making personal information available to a third party.

Employee - an employee of a TekSavvy Company.

Personal information – any information about an identifiable individual, but not aggregated information that cannot be associated with a specific individual. For a customer, such information includes, but is not limited to, a customer's credit information, billing records, service and equipment information, and any recorded complaints. For an employee, such information includes information found in personal employment files, performance appraisals and medical and benefits information.

Third party - an individual other than the customer, their agent or an organization other than the TekSavvy Companies.

Use - the treatment, handling, and management of personal information by the TekSavvy Companies.

V. PRIVACY PRINCIPLES

Principle 1 - Accountability

The TekSavvy Companies are responsible for all personal information under their control and shall designate one or more persons who are accountable for compliance with the following principles.

1.1 Responsibility for ensuring compliance with the provisions of the Privacy Policy rests with the senior management of the TekSavvy Companies, which shall designate one or more persons to be accountable for compliance with the Privacy Policy. Other individuals within TekSavvy Companies may be delegated to act on behalf of the designated person(s) or to take responsibility for the day-to-day collection and processing of personal information.

1.2 The TekSavvy Companies shall make known, upon request, the title of the person or persons designated to oversee the TekSavvy Companies' compliance with the Privacy Policy.

The TekSavvy Companies have designated the Data Protection Office to oversee compliance with the Privacy Policy. The Data Protection Office can be contacted at:

Data Protection Office
TekSavvy Solutions Inc
800 Richmond Street
Chatham, Ontario N7M 5J5
Fax: 1.519.360.1716
Email: privacy@teksavvy.ca

1.3 The TekSavvy Companies are responsible for all personal information in their possession or control, including information that has been transferred to a third party for processing. The TekSavvy Companies shall use appropriate means to provide a comparable level of protection while information is being processed by a third party (see Principle 7).

1.4 The TekSavvy Companies have implemented policies and procedures to give effect to the Privacy Policy, including:

- a) implementing procedures to protect personal information and to oversee the TekSavvy Companies' compliance with the Privacy Policy;
- b) establishing procedures to receive and respond to inquiries or complaints;
- c) training and communicating to staff about the TekSavvy Companies' policies and practices; and
- d) developing public information to explain the TekSavvy Companies' policies and practices.

Principle 2 - Identifying Purposes for Collection of Personal Information

The TekSavvy Companies shall identify the purposes for which personal information is collected at or before the time the information is collected.

2.1 The TekSavvy Companies shall collect personal information only for the following purposes:

- a) To establish and maintain responsible commercial relations with customers and to provide ongoing service;
- b) To understand customer needs;
- c) To develop, enhance, market or provide products and services;
- d) To manage and develop their business and operations, including personnel and employment matters; and
- e) To meet legal and regulatory requirements.

Further references to "identified purposes" mean the purposes identified in this Principle 2.1.

2.2 The TekSavvy Companies shall specify orally, electronically or in writing the identified purposes to the customer or employee at or before the time personal information is collected. Upon request, persons collecting personal information shall explain these identified purposes or refer the individual to a designated person within the TekSavvy Companies who shall explain the purposes.

2.3 Unless required by law, the TekSavvy Companies shall not use or disclose, for any new purpose, personal information that has been collected without first identifying and documenting the new purpose and obtaining the consent of the customer or employee.

2.4 As members of the public browse the website teksavvy.com or other websites of the TekSavvy Companies ("Sites"), advertising cookies will be placed on the users' computers so that the TekSavvy Companies can understand consumer interests. "Cookies" are small information packets that a website creates which are stored on the hard drive of a user's computer by the user's browser software. The TekSavvy Companies use cookies to track and collect information relating to use of the Sites by the public. The display-advertising partner, AdRoll, then enables the TekSavvy Companies to present users of the Sites with retargeted advertising on other sites based on the users' previous interaction with the Sites. The techniques employed by AdRoll and their advertising partners do not collect personal information such as user names, email addresses, postal addresses or telephone numbers. Members of the public can visit this [page](#) to opt out of AdRoll and their partners' targeted advertising.

Principle 3 - Obtaining Consent for Collection, Use or Disclosure of Personal Information

The knowledge and consent of a customer or employee is required for the collection, use or disclosure of personal information, except where inappropriate.

3.1 In certain circumstances personal information can be collected, used or disclosed without the knowledge or consent of the individual. For example, the TekSavvy Companies may collect or use personal information without knowledge or consent if it is clearly in the interests of the individual and consent cannot be obtained in a timely way, such as when the individual is a minor, seriously ill or mentally incapacitated.

The TekSavvy Companies may also collect, use or disclose personal information without knowledge or consent if seeking the consent of the individual might defeat the purpose of collecting the information such as in the investigation of a breach of an agreement or a contravention of a federal or provincial law.

The TekSavvy Companies may also use or disclose personal information without knowledge or consent in the case of an emergency where the life, health or security of an individual is threatened.

The TekSavvy Companies may disclose personal information without knowledge or consent to a lawyer representing the TekSavvy Companies, to collect a debt, to comply with a subpoena, warrant or other court order, or as may be otherwise required by law.

3.2 In obtaining consent, the TekSavvy Companies shall use reasonable efforts to ensure that a customer or employee is advised of the identified purposes for which personal information will be used or disclosed. Purposes shall be stated in a manner that can be reasonably understood by the customer or employee.

3.3 Generally, the TekSavvy Companies shall seek consent to use and disclose personal information at the same time they collect the information. However, the TekSavvy Companies may seek consent to use and disclose personal information after it has been collected but before it is used or disclosed for a new purpose.

3.4 The TekSavvy Companies will require customers to consent to the collection, use or disclosure of personal information as a condition of the supply of a product or service only if such collection, use or disclosure is required to fulfill the identified purposes.

· For example, TekSavvy may collect customers' IP address, MAC address, and router settings from routers connected to TekSavvy's network for the purpose of providing ongoing service. TekSavvy uses this data to routinely monitor and manage end-users' connectivity and performance on TekSavvy's network.

3.5 In determining the appropriate form of consent, the TekSavvy Companies shall take into account the sensitivity of the personal information and the reasonable expectations of their customers and employees.

3.6 In general, the use of products and services by a customer, or the acceptance of employment or benefits by an employee, constitutes implied consent for the TekSavvy Companies to collect, use and disclose personal information for all identified purposes.

3.7 A customer or employee may withdraw consent at any time, subject to legal or contractual restrictions and reasonable notice. Customers and employees may contact the TekSavvy Companies for more information regarding the implications of withdrawing consent.

Principle 4 - Limiting Collection of Personal Information

The TekSavvy Companies shall limit the collection of personal information to that which is necessary for the purposes identified. The TekSavvy Companies shall collect personal information by fair and lawful means.

4.1 The TekSavvy Companies collect personal information primarily from their customers or employees.

4.2 The TekSavvy Companies may also collect personal information from other sources including credit bureaus, employers or personal references, or other third parties that represent that they have the right to disclose the information.

Principle 5 - Limiting Use, Disclosure and Retention of Personal Information

The TekSavvy Companies shall not use or disclose personal information for purposes other than those for which it was collected, except with the consent of the individual or as required by law. The TekSavvy Companies shall retain personal information only as long as necessary for the fulfillment of those purposes.

5.1 We do not share personal information with anyone outside the TekSavvy Companies where we can avoid it, however circumstances when we have to do so.

- **We limit how much information we disclose to third parties:** With respect to third party requests for information, where we are required to disclose personal information we limit it to the information required in the circumstances, provide it only for the purpose stipulated, and make it subject to strict terms of confidentiality. When a court orders us to provide personal information, we tell you about it unless we have been ordered by law not to, and we follow up regularly to question whether non-disclosure orders ought to remain in force.

- **We work to keep as much traffic within Canada as we can:** With respect to Internet traffic, we place an emphasis on preferring in-country interconnection for domestic traffic. We peer openly with peers in Canada whose Autonomous Systems are mostly located within Canada and who provide geographically diverse peering within Canada. We peer conditionally with other peers. We maintain publicly-available information on our traffic routing at [PeeringDB \(AS5645\)](#).

5.2 In certain circumstances personal information can be collected, used or disclosed without the knowledge and consent of the individual. (See Principle 3.1)

5.3 In addition, the TekSavvy Companies may disclose a customer's personal information to:

- a) another telecommunications services provider for the efficient and effective provision of telecommunications services;
- b) an entity involved in supplying the customer with communications or communications directory related services;
- c) another entity for the development, enhancement, marketing or provision of any of the products or services of the TekSavvy Companies;
- d) an agent retained by the TekSavvy Companies in connection with the collection of the customer's account;
- e) credit grantors and reporting agencies;
- f) a person who, in the reasonable judgment of the TekSavvy Companies, is seeking the information as an agent of the customer; and
- g) a third party or parties, where the customer consents to such disclosure or disclosure is required by law.

5.4 The TekSavvy Companies may disclose personal information about their employees:

- a) for normal personnel and benefits administration;
- b) in the context of providing references regarding current or former employees in response to requests from prospective employers, to the extent that such references are granted at all; or
- c) where disclosure is required by law.

5.5 Only those employees of the TekSavvy Companies who require access for business reasons, or whose duties reasonably so require, are granted access to personal information about customers and employees.

5.6 The TekSavvy Companies shall keep personal information only as long as it remains necessary or relevant for the identified purposes or as required by law. Depending on the circumstances, where personal information has been used to make a decision about a customer or employee, the TekSavvy Companies shall retain, for a period of time that is reasonably sufficient to allow for access by the customer or employee, either the actual information or the rationale for making the decision.

5.7 The TekSavvy Companies shall maintain reasonable and systematic controls, schedules and practices for information and records retention and destruction which apply to personal information that is no longer necessary or relevant for the identified purposes or required by law to be retained. Such information shall be destroyed, erased or made anonymous.

Principle 6 - Accuracy of Personal Information

Personal information shall be as accurate, complete and up-to-date as is necessary for the purposes for which it is to be used.

6.1 Personal information used by the TekSavvy Companies shall be sufficiently accurate, complete and up-to-date to minimize the possibility that inappropriate information may be used to make a decision about a customer or employee.

6.2 The TekSavvy Companies shall update personal information about customers and employees as and when necessary to fulfill the identified purposes or upon notification by the individual.

Principle 7 - Security Safeguards

The TekSavvy Companies shall protect personal information by security safeguards appropriate to the sensitivity of the information.

7.1 The TekSavvy Companies shall protect personal information against such risks as loss or theft, unauthorized access, disclosure, copying, use, modification or destruction, through appropriate security measures. The TekSavvy Companies shall protect the information regardless of the format in which it is held.

7.2 The TekSavvy Companies shall protect personal information disclosed to third parties by contractual agreements stipulating the confidentiality of the information and the purposes for which it is to be used.

7.3 All employees of the TekSavvy Companies with access to personal information shall be required as a condition of employment to respect the confidentiality of personal information.

Principle 8 - Openness Concerning Policies and Practices

The TekSavvy Companies shall make readily available to customers and employees specific information about their policies and practices relating to the management of personal information.

8.1 The TekSavvy Companies shall make information about their policies and practices easy to understand, including:

a) The title and address of the person or persons accountable for the TekSavvy Companies' compliance with the Privacy Policy and to whom inquiries or complaints can be forwarded;

b) The means of gaining access to personal information held by the TekSavvy Companies; and

c) A description of the type of personal information held by the TekSavvy Companies, including a general account of its use.

8.2 The TekSavvy Companies shall make available information to help customers and employees exercise choices regarding the use of their personal information and the privacy-enhancing services available from the TekSavvy Companies.

Principle 9 - Customer and Employee Access to Personal Information

The TekSavvy Companies shall inform a customer or employee of the existence, use and disclosure of his or her personal information upon request and shall give the individual access to that information. A customer or employee shall be able to challenge the accuracy and completeness of the information and to have it amended as appropriate.

9.1 Upon request, the TekSavvy Companies shall afford to a customer or an employee a reasonable opportunity to review the personal information in the individual's file. Personal information shall be provided in understandable form within a reasonable time and at minimal or no cost to the individual.

9.2 In certain situations, the TekSavvy Companies may not be able to provide access to all of the personal information that they hold about a customer or employee. For example, the TekSavvy Companies may not provide access to information if doing so would likely reveal personal information about a third party or could reasonably be expected to threaten the life or security of another individual. Also, the TekSavvy Companies may not provide access to information if disclosure would reveal confidential commercial information, if the information is protected by solicitor-client privilege, if the information was generated in the course of a formal dispute resolution process, or if the information was collected in relation to the investigation of a breach of an agreement or a contravention of a federal or provincial law. If access to personal information cannot be provided, the TekSavvy Companies shall provide the reasons for denying access upon request.

9.3 Upon request, the TekSavvy Companies shall provide an account of the use and disclosure of personal information and, where reasonably possible, shall state the source of the information. In providing an account of disclosure, the TekSavvy Companies shall provide a list of organizations to which it may have disclosed personal information about the individual when it is not possible to provide an actual list.

9.4 In order to safeguard personal information, a customer or employee may be required to provide sufficient identification information to permit the TekSavvy Companies to account for the existence, use and disclosure of personal information and to authorize access to the individual's file. Any such information shall be used only for this purpose.

9.5 The TekSavvy Companies shall promptly correct or complete any personal information found to be inaccurate or incomplete. Any unresolved differences as to accuracy or

completeness shall be noted in the individual's file. Where appropriate, the TekSavvy Companies shall transmit to third parties having access to the personal information in question any amended information or the existence of any unresolved differences.

9.6 A customer can obtain information or seek access to his or her individual file by contacting a designated representative at 1.877.779.1575 in English or 1.800.368.6909 in French, or by sending an email containing such a request in English or French to privacy@teksavvy.ca.

9.7 An employee can obtain information or seek access to his or her individual file by contacting his or her immediate supervisor within the applicable TekSavvy Company.

Principle 10 - Challenging Compliance

A customer or employee shall be able to address a challenge concerning compliance with the above principles to the designated person or persons accountable for the TekSavvy Companies' compliance with the Privacy Policy.

10.1 The TekSavvy Companies shall maintain procedures for addressing and responding to all inquiries or complaints from their customers and employees about the TekSavvy Companies' handling of personal information.

10.2 The TekSavvy Companies shall inform their customers and employees about the existence of these procedures as well as the availability of complaint procedures.

10.3 The person or persons accountable for compliance with the Privacy Policy may seek external advice where appropriate before providing a final response to individual complaints.

10.4 The TekSavvy Companies shall investigate all complaints concerning compliance with the Privacy Policy. If a complaint is found to be justified, TekSavvy shall take appropriate measures to resolve the complaint including, if necessary, amending its policies and procedures. A customer or employee shall be informed of the outcome of the investigation regarding his or her complaint.

For inquiries, complaints or more information please contact:

Data Protection Office TekSavvy Solutions Inc.
800 Richmond Street
Chatham, Ontario N7M 5J5
Fax: 1.519.360.1716
Email: privacy@teksavvy.ca

The TekSavvy Companies will continue to review the Privacy Policy on a regular basis and at least every five years to make sure it is relevant and remains current with changing technologies and laws and the evolving needs of the TekSavvy Companies, our customers and employees.

VI. ADDITIONAL INFORMATION

For a copy of the Personal Information Protection and Electronic Documents Act, please see the Privacy Commissioner of Canada website at <http://www.priv.gc.ca/>.

For a copy of TekSavvy's most recent Transparency Report, please visit <https://www.teksavvy.com/policies/legal-stuff/transparency-report/>

Privacy FAQs

Last updated: September 19, 2023

Q. Why does TekSavvy have a Privacy Policy?

A. Our Privacy Policy ensures that our commitment to your privacy is upheld. The Privacy Policy reflects our most recent policies setting out your rights and our obligations respecting the treatment of your personal information by the TekSavvy Companies. The Privacy Policy complies with the requirements of the Personal Information Protection and Electronic Documents Act as well as the Canadian Standards Association Model Code for the Protection of Personal Information. (A summary of the principles underlying the Privacy Policy is included in Section II above.)

Q. How do the TekSavvy Companies ensure that their employees and agents adhere to the Privacy Policy when handling personal information?

A. Employees and agents acting on our behalf are required to adhere to the Privacy Policy. All of our employees who have access to personal information are trained in the handling of such information, and new employees receive training on privacy as a fundamental part of their initial company training. All of our employees must review and commit to the Privacy Policy annually.

Q. What is personal information?

A. Personal information is information about an identifiable individual. This includes information about your product and service subscriptions and usage.

Q. Why does TekSavvy collect information?

A. Collecting information helps us serve you better. The TekSavvy Companies collect personal information only for the following purposes:

- to establish and maintain responsible commercial relations with you and provide you with ongoing service;
- to understand your needs and eligibility for products & services;
- to recommend particular products & services to meet your needs;
- to develop, enhance, market or provide products and services;
- to manage and develop the business and operations of the TekSavvy Companies, including personnel and employment matters; and
- to meet legal and regulatory requirements.

Your personal information will not be used for any other purpose without your consent.

Q. Where does TekSavvy store personal information that it has collected?

A. Our general policy is to store personal information within Canada. However, some personal information stored in third-party systems is accessed or stored outside of Canada, particularly where the third-party provider is not Canadian. Where this occurs, it is our policy to inform you wherever possible, generally at the point at which the information is collected or used. Third-party systems for which we currently provide such notification include Zendesk, which we use for customer support; Zopim, the chat functionality built into Zendesk; and SmartFocus, which we use to handle large-scale email, track responses, and enable one-click opt-outs. All of these use servers located in the United States. Some also may use servers located in Europe.

Contractually, we require the parties to whom we transfer personal information to provide an equivalent level of protection. However, they -- both abroad, and also in Canada -- are subject to the laws of the countries in which they are located or headquartered. In the United States, this means that your information may be subject to U.S. disclosure obligations.

Q. Why do we share information among the TekSavvy Companies?

A. Sharing information among the TekSavvy Companies helps us understand your full needs and serve you better. Such sharing helps us identify your information, communication, and entertainment needs, and provide you with relevant information, advice, products and services. In some cases, certain products and service are available only from some of the TekSavvy Companies and not others. Therefore, in such cases, the sharing of information may also be necessary for the provision of certain bundles of products and/or services. Should you identify incorrect or outdated information to us, we will make the necessary changes promptly.

Q. Can I withdraw my consent to the sharing of information among the TekSavvy Companies when such sharing is for the purpose of promoting products and services?

A. You may decide that you prefer us not to share your personal information among the TekSavvy Companies to promote products and services. If this is the case, you may advise us by calling us at 1.877.779.1575 in English or 1.800.368.6909 in French.

Q. Do you share personal information with any other parties, and if so, who?

A. We understand "personal information" broadly: customer name & address, payment information, and account activity like volume of data transferred, to be sure; but also identifiers like IP addresses, MAC addresses, and anything else that, when added to what many third parties already know, could identify you personally.

We do not share personal information with anyone outside the TekSavvy Companies where we can avoid it. However, there are contractual, court-ordered, and emergency circumstances when we have to do so. When we do, we limit it to the information required in the circumstances, inform you where allowed, provide it only for the purpose stipulated, and make it subject to strict terms of confidentiality. Contractually, we require the parties to whom we transfer personal information to provide an equivalent level of protection; we require their employees of the companies to adhere to our privacy standards. When a court orders us to provide personal information, we tell you about it unless we have been ordered by law not to, and we follow up regularly to question whether non-disclosure orders ought to remain in force.

Third parties to whom we provide personal information, and are held to the above standards, include:

- Service providers acting on behalf of a TekSavvy Company. This, notably, includes wholesale network access providers. But it may also include other service providers: those hired to perform installation or maintenance on our behalf; a collection agency, for the express purpose of collecting past due bills; an emergency services provider (9-1-1); and providers of certain software we use (customer support, via Zendesk; customer chat, via Zopim; and SmartFocus, which we use to handle large-scale email, track responses, and enables one-click opt-outs).
- Other communications service providers, to offer efficient and effective communications services. For instance, we participate in CRTC-mandated number portability and other activities which require providing clearly-identified information elements to your new provider.
- Where required by law, such as by court order or warrant; in exigent circumstances, where the law would have required it were there time; and for internal security matters. These have almost always been law enforcement or emergency services, but from time to time, third parties have gone to court to seek pre-trial “Norwich Orders” compelling us to provide information in our possession. Where they have, we have always insisted on providing our end-users with as much notice as is feasible in order to give them the opportunity to oppose such motions.
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Third parties to whom we may have to provide personal information include:

- An agent acting on behalf any one of the TekSavvy Companies, such as an entity hired to perform installation or maintenance on our behalf;
- Another communications service provider, in order to offer efficient and effective communications services (e.g., to provide dialup Internet services while outside our coverage area for Internet services);
- A collection agency, for the express purpose of the collection of past due bills;
- Law enforcement agencies, in emergencies, for internal security matters, or where required by court order or search warrant; and

- Emergency services, in emergency situations.

Q. How do the TekSavvy Companies safeguard personal information?

A. We take all of the necessary precautions to ensure the safeguarding of your information, whether it is stored electronically or in paper format. In all cases, information is retained in secure facilities, protected from unauthorized access and kept only as long as is reasonably required. For example, our electronic files are backed up for redundancy, password protected and accessible only by authorized employees, on a need-to-know basis.

Q. How long does TekSavvy store IP address log information?

A. Log information remains within the database system for 30 days after a session is terminated. We have no purpose for that information beyond that point, so it is automatically deleted, on a rolling basis. However, end-users have the ability to maintain a single session indefinitely through persistent use. IP address log information is only deleted 30 days after the session has ended, whether through inactivity, the most common reason a session ends; a modem power-cycle; or some other external event.

In isolated cases, we are required to extract certain information from that system in order to preserve it for longer than 30 days. Occasionally we are required to do this by a court order in a criminal matter: see our [transparency reporting](#) and our Law Enforcement Guide for more details.

The most common reason for a mandated longer preservation period is to comply with the Copyright Act. Since January 2, 2015, we have been [required](#) to forward notices of claimed copyright infringement to the account information that matches the IP address and timestamp indicated on the notice. When we do so, we are also required to retain that IP-address-to-account correlation information, and the associated accountholder's identity, for six months. If the copyright owner who sent the notice commences court proceedings, we may be required to retain it for more than six months.

Q. What are "cookies" and do the TekSavvy Companies use them?

A. During user interaction with one of our Internet sites, we may use a browser feature called a "cookie" to collect information anonymously and track user patterns on our web sites. A cookie is a small text file containing a unique identification number that identifies your browser - but not you - to our computer systems each time you visit one of our sites that uses cookies. Cookies tell us which pages of our sites are visited and by how many people. This helps us to enhance the on-line experience of visitors to our sites.

Unless you specifically advise us, we will not know who you are, even though we may assign the browser associated with your computer a cookie. We cannot use cookies, by themselves, to disclose the individual identity of any site user, and we do not combine information gathered by a cookie with personally identifiable information like your name, telephone number, or email address without your consent.

Most major web sites use cookies and most major browsers are set up to accept them. If you wish, you can set your browser either to notify you when you have received a cookie, or to refuse to accept cookies. You do not need cookies to visit the web sites of TekSavvy Companies. However, if you refuse to accept cookies, you may not be able to use some of the features available on our sites, such as personalization features.

Q. Do you route personal information through another country, even where it is destined to a Canadian endpoint?

A. Yes. We place a special emphasis on preferring in-country interconnection for domestic traffic. We route domestically wherever possible, are very active in major Canadian Internet exchange point communities (including TORIX and QIX), peer wherever feasible, and do what we can to keep data within Canada. In fact, we are very active on this front. We peer openly with Canadian peers, and conditionally with international peers. At the same time, the United States has always been the major Internet hub: part of delivering an excellent experience to our end-users is ensuring excellent connectivity to key U.S. Internet traffic exchanges, and we maintain active routes between our Canadian network and California (the San Francisco and Los Angeles regions), Seattle, New York, and Chicago. We maintain publicly-available information on our traffic routing at [PeeringDB \(AS5645\)](#).

Q. Do you advocate for and defend your users' privacy rights?

A. Yes. Much of this is behind the scenes, in our contract negotiations and procurement processes, where we have become well-known for always pushing for more privacy protection. However, we also show up in court where doing so is the best way to make sure our users' privacy rights can be asserted, whether on large-scale matters like the well-known Voltage case; more day-to-day matters, like defamation cases that have the appearance of being strategic lawsuits against public participation ("SLAPPs"); or regulatory proceedings, such as the CRTC.

Q. What do I do if I have further questions or concerns?

A. If you have further questions or concerns about your privacy, you can contact us at 1.877.779.1575 in English or 1.800.368.6909 in French, or by sending an email containing such a request in English or French to info@teksavvy.com. Our customer service representatives will assist you in this regard.

Q. Who is responsible for overall compliance with the Privacy Policy?

A. The TekSavvy Privacy Ombudsman has overall responsibility for the TekSavvy Companies' compliance with the Privacy Policy and applicable privacy restrictions. If you still have unresolved concerns with respect to the treatment of your personal information by one of the TekSavvy Companies after contacting us at 1.877.779.1575 in English or 1.800.368.6909 in

French, or by sending an email containing such a request in English or French to privacy@teksavvy.ca, you may address these concerns, in writing, to the Data Protection Office.

You should write to:

Data Protection Office
TekSavvy Solutions Inc.
800 Richmond Street
Chatham, Ontario N7M 5J5
Fax: 519-360-1716
Email: privacy@teksavvy.ca

Please note that complaints to the Data Protection Office must be in writing and may be delivered by mail, fax, or email.

Q. Who is the person at TekSavvy who oversees the protection of personal information and ensuring that applicable privacy legislation is implemented and complied with?

A. TekSavvy's Chief Legal Officer. They may be contacted at 800 Richmond St., Chatham, ON, N7M 5J5 privacy@teksavvy.ca

Q. Is there a further complaint procedure?

A. If the TekSavvy Data Protection Office does not resolve a privacy issue to your satisfaction, you may file a complaint with the Privacy Commissioner of Canada through their website at <http://www.priv.gc.ca/>. or by writing to:

Privacy Commissioner of Canada
30, Victoria Street
Gatineau, Quebec
K1A 1H3